Chubb

82 Hopmeadow Street
P.O. Box 2002
Simsbury, CT 06070-7683
Phone: (860) 408-2000
Fax: (860) 408-2002

Rebeca Karcz
MARSH & MCLENNAN INSURANCE AGENCY LLC - BARNEY
9171 TOWNE CENTRE DR 100
SAN DIEGO, CA 92122-0000

CHUBB

Automatic Renewal - Bind Order Required

October 23, 2025

Rebeca Karcz
MARSH & MCLENNAN INSURANCE AGENCY LLC - BARNEY
9171 TOWNE CENTRE DR 100
SAN DIEGO, CA 92122-0000

RE: SCIQUUS, INC. INSURANCE PROPOSAL
INSURING COMPANY: FEDERAL INSURANCE COMPANY

Dear Rebeca:

Thank you for the opportunity to offer an insurance proposal for SCIQUUS, INC.. Chubb is proud of its ability to customize an insurance program for each account's needs.

Chubb offers products for publicly traded companies, non-profit organizations, privately-owned companies, financial institutions, health care organizations, and professional firms. Chubb is a leader in directors & officers liability insurance, employment practices liability insurance, commercial crime/fidelity insurance, and many other specialty products.

Our financial stability and ability to pay claims rate among the best in the insurance industry, as attested by Standard & Poor's and A.M. Best Company, the leading insurance rating services. Agents, brokers, and prospective customers often seek out our services because our reputation in the market is well known.

If you have any questions regarding this proposal or any other products or coverages from Chubb, please call to discuss.

Sincerely,

Joshua C Anolick
Underwriter
Direct Phone Number: (623) 445-2573
Fax Number: (877) 658-2634
Email Address: Joshua.Anolick@Chubb.com

Encl: ForeFront Portfolio 3.0 Proposal

CHUBB

October 23, 2025

Quotation Worksheet

To:

Account Number:	1008812
Account:	SciQuus, Inc.
	PO BOX 270356
	San Diego, CA 92198

In care of:

Producer Contact:	Rebeca Karcz
Producer:	MARSH & MCLENNAN INSURANCE AGENCY LLC - BARNEY
	9171 TOWNE CENTRE DR 100
	SAN DIEGO, CA 92122-0000
Licensed Producer:	N/A

Chubb Contact:	Joshua C Anolick
	(623) 445-2573
	Joshua.Anolick@Chubb.com

Product:	**ForeFront Portfolio 3.0℠**

Writing Company:	Federal Insurance Company

Policy Form:	14-02-17270 (Ed. 12/2010)

Expiring Policy:	8264-1382

Policy Period:	From: January 1, 2026
	To: January 1, 2027
	At 12:01 A.M. local time at the address in Item 1.

Billing Type:	Agency Bill

Installment Type:	None

Policy Commission:	19%

Please note the underwriting company for which this quote is being offered. All insurers of the Chubb Group of Insurance Companies share the same financial ratings.

Option 1

Coverage applicable to this option:
Directors & Officers and Entity Liability Coverage Part - Form # 14-02-17271
Employment Practices Liability Coverage Part - Form # 14-02-17272
Fiduciary Liability Coverage Part - Form # 14-02-17273
Crime Coverage Part - Form # 14-02-17277

General Terms and Conditions Option 1

Combined Maximum Aggregate Limit Group 1

The Combined Maximum Aggregate Limit of Liability for all Claims under all Liability Coverage Parts shall be:

$1,000,000

The Combined Maximum Aggregate Limit of Liability is applicable to:
Directors & Officers and Entity Liability
Employment Practices Liability
Fiduciary Liability

Endorsements: The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

14-02-17753(12/10 ed.)	California Amendatory Endorsement to the General Terms and Conditions
14-02-17754(12/10 ed.)	California Premium Endorsement
14-02-21868(8/15 ed.)	PREDETERMINED RUN-OFF ENDORSEMENT
14-02-22814(12/17 ed.)	CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM
14-02-22828(9/17 ed.)	GTC SUPPLEMENTAL ENDORSEMENT
14-02-22829(9/17 ed.)	GTC ENHANCEMENT ENDORSEMENT
14-02-23030(5/18 ed.)	Notice of Loss Control Services
ALL-20887A(9/19 ed.)	Important Notice to Policy Holders
PF-17914A(4/16 ed.)	U S Treasury Department s Office Of Foreign Assets Control OFAC Advisory Notice to Policyholders

Extended Reporting Period:

(A) Additional Period:	1 year
(B) Additional Premium:	100% of Annual Premium

Directors & Officers and Entity Liability Coverage Part Option 1

Maximum Aggregate Limit of Liability for this Coverage Part: $1,000,000

Optional Coverage Applicable to this Coverage Part:
Additional Limit of Liability Dedicated for Executives: $1,000,000

Retentions:

Insuring Clause A Individual Non-Indemnified Liability Coverage:	NONE
Insuring Clause B Individual Indemnified Liability Coverage:	$5,000
Insuring Clause C Entity Liability Coverage:	$5,000

Pending or Prior Proceedings Dates:

Insuring Clause A and B:	January 01, 2014
Insuring Clause C:	January 01, 2014

Premium: $5,421.00

Endorsements: The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

14-02-17293(1/11 ed.)	AMEND ADDITIONAL LIMIT OF LIABILITY DEDICATED FOR EXECUTIVES ENDORSEMENT
14-02-17755(12/10 ed.)	California Amendatory Endorsement to the Directors and Officer Liability Coverage Part
14-02-18059(5/11 ed.)	AMEND BODILY INJURY PROPERTY DAMAGE EXCLUSION ENDORSEMENT
14-02-18063(9/17 ed.)	INTELLECTUAL PROPERTY EXCLUSION
14-02-18527(11/11 ed.)	SERVICE INDUSTRY ENDORSEMENT
14-02-19646(2/13 ed.)	FALSE ADVERTISING ENDORSEMENT
14-02-21084(3/14 ed.)	JOBS ACT ENDORSEMENT
14-02-22019(4/16 ed.)	Add Employed Lawyer Coverage Endorsement
14-02-22219(4/17 ed.)	INTERVIEW COVERAGE AND AMENDED DEFINITION OF CLAIM ENDORSEMENT
14-02-22830(9/17 ed.)	D&O ENHANCEMENT ENDORSEMENT
14-02-5989 F3(5/11 ed.)	PRINCIPAL SHAREHOLDERS EXCLUSION ENDORSEMENT
PF-278965(8/19 ed.)	PRIVACY AND DATA BREACH EXCLUSION ENDORSEMENT
PF-301808(5/20 ed.)	EMPLOYMENT PRACTICES THIRD PARTY EXCLUSION WITH NON-INDEMNIFIABLE LOSS AND SECURITYHOLDER CARVE-OUT ENDORSEMENT

Employment Practices Liability Coverage Part Option 1

Maximum Aggregate Limit of Liability for this Coverage Part: $1,000,000

Insuring Clauses:

Insuring Clause A Employment Practices Liability Coverage:	$1,000,000
Insuring Clause B Third Party Liability Coverage:	$1,000,000

Retentions:

Insuring Clause A Employment Practices Liability Coverage:	$25,000
Insuring Clause B Third Party Liability Coverage:	$25,000

Pending or Prior Proceedings Dates:

Insuring Clause A:	January 01, 2014
Insuring Clause B:	January 01, 2014

Premium: $4,799.00

Endorsements: The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

14-02-14609 F3(8/11 ed.)	WORKPLACE VIOLENCE EXPENSE ENDORSEMENT (With Sublimit)
14-02-17238 F3(7/12 ed.)	IMMIGRATION CLAIM COVERAGE ENDORSEMENT WITH SUBLIMIT FOR DEFENSE COSTS
14-02-17756(12/10 ed.)	California Amendatory Endorsement to the Employment Practices Liability Coverage Part
14-02-21810(5/15 ed.)	AMEND REPORTING ENDORSEMENT
14-02-22735(6/17 ed.)	AMEND DEFENSE AND SETTLEMENT ENDORSEMENT
14-02-22795(7/17 ed.)	VIOLATION OF EMPLOYEE PRIVACY ENDORSEMENT DEFENSE COSTS ONLY WITH SUBLIMIT
14-02-22969(9/17 ed.)	EPL ENHANCEMENT ENDORSEMENT
14-02-3206 F3(5/11 ed.)	Loss Prevention Consultant Services Endorsement
PF-284885(10/19 ed.)	BIOMETRIC INFORMATION PRIVACY CLAIM EXCLUSION ENDORSEMENT

Fiduciary Liability Coverage Part Option 1

Maximum Aggregate Limit of Liability for this Coverage Part: $1,000,000

Retentions:
Insuring Clause A Fiduciary Liability Coverage: $0
Insuring Clause B Voluntary Settlement Program Coverage: $0

Pending or Prior Proceedings Dates:
Insuring Clause A: January 01, 2014
Insuring Clause B: January 01, 2014

Premium: $702.00

Endorsements: The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

14-02-17297(12/10 ed.)	AMEND VOLUNTARY SETTLEMENT PROGRAM COVERAGE ENDORSEMENT
14-02-17298(12/10 ed.)	AMEND HIPAA CIVIL MONEY PENALTIES ENDORSEMENT
14-02-17299(12/10 ed.)	AMEND 502 c CIVIL PENALTIES ENDORSEMENT
14-02-17300(12/10 ed.)	PPACA CIVIL MONEY PENALTIES ENDORSEMENT
14-02-17301(1/11 ed.)	IRS SECTION 4975 COVERAGE ENDORSEMENT
14-02-17757(12/10 ed.)	California Amendatory Endorsement to the Fiduciary Liability Coverage Part
14-02-19911(4/13 ed.)	FIDUCIARY LIABILITY COVERAGE ENHANCEMENTS ENDORSEMENT FOREFRONT PORTFOLIO 3 0sm
14-02-22836(9/17 ed.)	FIDUCIARY ENHANCEMENT ENDORSEMENT

Crime Coverage Part Option 1

Insuring Clauses Applicable to this Coverage Part:	Limits of Liability	Retentions
(A) Employee Theft Coverage:	$250,000	$5,000
(B) Premises Coverage:	$250,000	$5,000
(C) In Transit Coverage:	$250,000	$5,000
(D) Forgery Coverage:	$250,000	$5,000
(E) Computer Fraud Coverage:	$250,000	$5,000
(F) Funds Transfer Fraud Coverage:	$250,000	$5,000
(G) Money Orders & Counterfeit Currency Fraud Coverage:	$250,000	$5,000

(H) Credit Card Fraud Coverage:	$250,000	$5,000
(I) Client Coverage:	$250,000	$5,000
(J) Expense Coverage:	$50,000	Not Applicable
Social Engineering Fraud Coverage Endorsement:	$50,000	$10,000

Coverage applies as follows:
Loss Discovered

Premium: $620.00

Endorsements: The titles and headings are for convenience only. Please refer to the policy and endorsements for a description of coverage.

14-02-18107(5/11 ed.)	RECOVERIES SECTION ADDED ENDORSEMENT
14-02-19628(8/14 ed.)	PRIVACY AND DATA BREACH EXCLUSIONS ENDORSEMENT
14-02-21134(5/14 ed.)	SOCIAL ENGINEERING FRAUD COVERAGE ENDORSEMENT
14-02-22966(9/17 ed.)	PRIVATE COMPANY CRIME ENHANCEMENT ENDORSEMENT
ALL-317454(3/21 ed.)	Notice to Policyholders - Social Engineering Fraud Information
FL-261169(7/18 ed.)	Fraudulent Instructions Exclusion
PF-271128(1/19 ed.)	ERISA AMENDATORY ENDORSEMENT
PF-381894(4/24 ed.)	COMPUTER FRAUD COVERAGE AMENDATORY ENDORSEMENT

TOTAL POLICY PREMIUM FOR OPTION 1: $11,542.00

Quotation Information:

CONTINGENCIES: The above quotation is expressly contingent upon receipt, review and acceptance of the subjectivities listed below. We must receive all of the items identified below on or before the Quotation Expiration date shown below. If all of these items are not received and approved by us on or before this date, this quotation will automatically expire without further action or notice.

1. Automatic Renewal – See page 1 of Broker Renewal Letter

IMPORTANT

The foregoing quotation for coverage is subject to modification or withdrawal by the Company if, before the proposed inception date, any new, corrected or updated information becomes known which relates to any proposed Insured's claims history or risk exposure or which could otherwise change the underwriting evaluation of any proposed Insured, and the Company, in its sole discretion, determines that the terms of this quotation are no longer appropriate.

This proposal does not apply to the extent that trade or economic sanctions or other laws or regulations prohibit us from offering or providing insurance. To the extent any such prohibitions apply, this proposal is void ab initio.

This information is intended for producers that are properly licensed and authorized in at least one of the writing companies that comprise the Chubb Group of Insurance Companies (Chubb). If you are not a licensed and authorized Chubb producer, please direct this communication to the person in your office that holds such designations and contact Chubb to update the contact information for this policy.

Quotation Expiration: 30 Days

If you have any questions, please call me at (623) 445-2573.

Joshua C Anolick
Underwriter
Fax Number: (877) 658-2634
Email Address: Joshua.Anolick@Chubb.com

CHUBB®

OFFEREE DISCLOSURE NOTICE OF
TERRORISM INSURANCE COVERAGE
(new policies and renewals with no terrorism
exclusion or sublimit and no premium charge)

Insuring Company: Federal Insurance Company

You are hereby notified that, under the Terrorism Risk Insurance Act (the “Act”) effective December 26, 2007, we are making available to you insurance for losses arising out of certain acts of terrorism. The policy you are purchasing already includes insurance for such acts. Terrorism is defined as any act certified by the Secretary of the Treasury, in concurrence with the Secretary of State and the Attorney General of the United States, to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of an air carrier or vessel or the premises of a United States Mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

You should know that the insurance provided by your policy for losses caused by acts of terrorism is partially reimbursed by the United States under the formula set forth in the Act. Under this formula, the United States pays 85% of covered terrorism losses that exceed the statutorily established deductible to be paid by the insurance company providing the coverage. However, if aggregate insured losses attributable to terrorist acts certified under the Act exceed $100 billion in a Program Year (January 1 through December 31), the Treasury shall not make any payment for any portion of the amount of such losses that exceeds $100 billion.

If aggregate insured losses attributable to terrorist acts certified under the Act exceed $100 billion in a Program Year (January 1 through December 31) and we have met our insurer deductible under the Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds $100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

The portion of the offered policy’s annual premium that is attributable to insurance for acts of terrorism is: $ -0-.

If you have any questions about this notice, please contact your agent or broker.

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

WORKPLACE VIOLENCE EXPENSES ENDORSEMENT
(WITH SUBLIMIT)

In consideration of the premium charged, it is agreed that solely with respect to this Coverage Part, the following shall apply:

(1) Section I, Insuring Clauses, of this Coverage Part shall be amended to add the following Insuring Clause:

Workplace Violence Expense Coverage

The Company shall reimburse the **Parent Organization** for “Workplace Violence Expenses” (as defined below) incurred by an **Organization** resulting from any “Workplace Violence” (as defined below); provided that the Company’s maximum aggregate liability for all Workplace Violence Expenses shall not exceed <SUBLIMIT>, which amount is part of, and not in addition to, the Company’s maximum aggregate Limit of Liability set forth in Item 2 of the EPL Declarations.

(2) No Retention shall apply to Workplace Violence Expenses; provided however, if different parts of a single **Claim** are subject to different Retentions, the applicable Retentions will be applied separately to each part of such **Claim**, but the sum of such Retentions shall not exceed the largest applicable Retention as set forth in Item 4 of the EPL Declarations. Such Retention shall be borne by the **Insureds** uninsured and at their own risk.

(3) For the purposes of this endorsement, Exclusion (D), Bodily Injury/Property Damage, of this Coverage Part is deleted and replaced with the following:

(D) Bodily Injury/Property Damage
based upon, arising from, or in consequence of bodily injury, mental anguish, emotional distress, sickness, disease or death of any person or damage to or destruction of any tangible property including loss of use thereof whether or not it is damaged or destroyed; provided that this Exclusion (D) shall not apply to **Loss** for any mental anguish, humiliation or emotional distress when alleged as part of an otherwise covered **Claim**;

(4) The terms and conditions of subsection (A) of Section VI, Defense and Settlement, of this Coverage Part shall not apply to the coverage for “Workplace Violence Expenses” (as defined below) afforded pursuant to the Workplace Violence Expense Coverage Insuring Clause as set forth in paragraph (1) of this endorsement.

(5) For the purposes of this endorsement, the following terms shall apply:

“Workplace Violence” means any intentional and unlawful act:

(i) of deadly force involving the use of lethal weapon; or

(ii) the threat of deadly force involving the display of a lethal weapon,

which occurs on or in the “Premises” (as defined below) and which did or could result in bodily injury or death to an **Insured Person**.

“Workplace Violence Expenses” means the reasonable fees and expenses, or cost of:

(i) an independent security consultant for ninety (90) days following the date Workplace Violence occurs;

(ii) an independent public relations consultant for ninety (90) days following the date Workplace Violence occurs;

(iii) a counseling seminar for all **Employees** conducted by an independent consultant following a Workplace Violence;

(iv) independent security guard services for up to fifteen (15) days; and

(v) an independent forensic analyst.

“Premises” means the buildings, facilities or properties occupied by an **Organization** in conducting its business.

(6) For the purposes of this endorsement, no coverage will be available under this Coverage Part for:

(a) any Workplace Violence which occurs at any location other than the Premises;

(b) **Loss** arising from declared or undeclared war, civil war, insurrection, riot, civil commotion, rebellion or revolution, military, naval or usurped power, governmental intervention, expropriation or nationalization;

(c) legal costs, judgments and settlements incurred as the result of any claim, suit or judicial action brought against an **Organization** in connection with Workplace Violence; or

(d) **Loss** resulting from the use or threat of force or violence occurring on the Premises for the purpose of demanding money, securities or property.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

IMMIGRATION CLAIM COVERAGE ENDORSEMENT
(WITH SUBLIMIT FOR DEFENSE COSTS)

In consideration of the premium charged, it is agreed that this Coverage Part is amended as follows:

(1) Section I. Insuring Clauses, is amended to add the following Insuring Clause:

Immigration Claim Defense Costs Coverage

The Company shall pay **Defense Costs** on behalf of the **Insureds** resulting from any "Immigration Claim" (as defined below) first made against such **Insureds** during the **Policy Year**, or any applicable Extended Reporting Period, for any "Immigration Wrongful Act" (as defined below) committed or allegedly committed prior to the end of the **Policy Year**; provided, that the Company's maximum aggregate limit of liability for any such **Defense Costs** shall be <SUBLMTUPTO50K>, which amount shall be part of and not in addition to the Limit of Liability set forth in Item 3(A) of the EPL Declarations (hereinafter "Immigration Claim Defense Costs Sublimit").

(2) The Retention set forth in Item 4, Retentions, of the EPL Declarations applicable to Insuring Clause (A), Employment Practices Liability Coverage, shall also be the Retention applicable to the Immigration Claim Defense Costs Coverage set forth in paragraph (1) of this endorsement.

(3) For purposes of Section III. Exclusions, of this Coverage Part, the term **Claim**, as used therein, shall also include any "Immigration Claim".

(4) No coverage will be available under this Coverage Part for **Defense Costs** resulting from any Immigration Claim for an Immigration Wrongful Act of which any <TITLES> of the **Organization** had knowledge prior to <DATE>.

(5) For purposes of this endorsement, the following terms shall apply:

"Immigration Claim" means a criminal investigation of any of the **Insureds** by any governmental agency. "Immigration Claim" shall not include any labor or grievance arbitration or other proceeding pursuant to a collective bargaining agreement.

"Immigration Wrongful Act" means an actual or alleged violation of the responsibilities, obligations or duties imposed by the Immigration Control Act of 1986 or any other similar federal or state laws or regulations in connection with the actual or alleged hiring or harboring of illegal aliens.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

AMEND ADDITIONAL LIMIT OF LIABILITY DEDICATED FOR EXECUTIVES ENDORSEMENT

In consideration of the premium charged, it is agreed that Subsection (A) of Section III., Additional Limit of Liability Dedicated for Executives, of this Coverage Part is deleted and replaced with the following:

(A) Notwithstanding anything in this Policy to the contrary, the Additional Limit of Liability Dedicated For Executives, if purchased as set forth in Item 3 of the D&O Declarations, shall be an additional Limit of Liability in an amount not to exceed $1,000,000, which amount is in addition to, and not part of, the Maximum Aggregate Limit of Liability set forth in Item 2 of the D&O Declarations.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

AMEND VOLUNTARY SETTLEMENT PROGRAM COVERAGE ENDORSEMENT

In consideration of the premium charged, it is agreed that Section I. Insuring Clause (B), Voluntary Settlement Program Coverage, of this Coverage Part is deleted and replaced with the following:

(B) The Company shall pay, on behalf of an **Insured**, **Voluntary Program Loss** and **Defense Costs** with respect to a **Voluntary Program Notice** that is first given to the Company during the **Policy Period**, provided that the Company's maximum liability for all **Voluntary Program Loss** and **Defense Costs** for the **Policy Year** shall be $<SUBLMTNOMORETHAN250K>, which amount is part of, and not in addition to, the Maximum Aggregate Limit of Liability set forth in Item 2 of the FL Declarations.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

AMEND HIPAA CIVIL MONEY PENALTIES ENDORSEMENT

In consideration of the premium charged, it is agreed that Subparagraph (4)(f) of the definition of **Loss** as set forth in Section II. Definitions, of this Coverage Part is deleted and replaced with the following:

(f) civil money penalties imposed upon an **Insured** for such **Insured's** violation of the privacy provisions of the Health Insurance Portability and Accountability Act of 1996, as amended; provided the Company's maximum limit of liability for all such civil money penalties on account of all **Claims** first made during the **Policy Year** shall be $<SUBLMTNOMORETHAN250K>, which amount is part of, and not in addition to, the Maximum Aggregate Limit of Liability set forth in Item 2 of the FL Declarations;

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

AMEND 502(c) CIVIL PENALTIES ENDORSEMENT

In consideration of the premium charged, it is agreed that Subparagraph (4)(e) of the definition of **Loss** as set forth in Section II. Definitions, of this Coverage Part is deleted and replaced with the following:

(e) civil penalties imposed upon an **Insured** as a fiduciary under Section 502(c) of the Employee Retirement Income Security Act of 1974, as amended (including any amendments pursuant to Section 507 of Title V of the Pension Protection Act of 2006); provided the Company's maximum limit of liability for all such civil penalties on account of all **Claims** first made during the **Policy Year** shall be $ <SUBLMTNOMORETHAN250K>, which amount is part of, and not in addition to, the Maximum Aggregate Limit of Liability set forth in Item 2 of the FL Declarations;

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

PPACA CIVIL MONEY PENALTIES ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) The definition of **Loss** as set forth in Section II. Definitions, of this Coverage Part is amended by adding the following exception to Paragraph (4):

> civil money penalties imposed upon an **Insured** for inadvertent violation of the Patient Protection and Affordable Care Act, as amended ("PPACA"), and any rules or regulations promulgated thereunder; provided the Company's maximum limit of liability for all such civil money penalties on account of all **Claims** first made during the **Policy Year** shall be $<SUBLMTNOMORETHAN250K>, which amount is part of, and not in addition to, the Maximum Aggregate Limit of Liability set forth in Item 2 of the FL Declarations;

(2) No Retention shall apply to **Loss** constituting civil money penalties imposed by law upon an **Insured** for inadvertent violation of PPACA, and any rules or regulations promulgated thereunder.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

IRS SECTION 4975 COVERAGE ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) The definition of **Loss** as set forth in Section II. Definitions, of this Coverage Part is amended by adding the following exception to Paragraph (4):

> with respect to covered judgments, the fifteen percent (15%) or less tax penalty imposed upon an **Insured** under Section 4975 of the Internal Revenue Code of 1986; provided the Company's maximum limit of liability for all such tax penalties on account of all **Claims** first made during the **Policy Year** shall be $<SUBLMTNOMORETHAN250K>, which amount is part of, and not in addition to, the Maximum Aggregate Limit of Liability set forth in Item 2 of the FL Declarations;

(2) Solely with respect to the tax penalties described in paragraph (1) of this endorsement, no Retention shall apply.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT

<COVSECT>

Effective date of
this endorsement: <TRXEFFDATE>

<CARRNAME>

Endorsement No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

CALIFORNIA AMENDATORY ENDORSEMENT
TO THE GENERAL TERMS AND CONDITIONS SECTION

In consideration of the premium charged, it is agreed that:

1. Section X, Termination of Policy, is amended by adding the following at the end of paragraph (A)(2):

   provided that, non-renewal by the Company is effective only if the Company mails or delivers notice of non-renewal to the **Parent Organization** and to the agent of record, if any, at the mailing address shown on this Policy at least sixty (60) but not more than one hundred twenty (120) days before the expiration of the **Policy Period**; or

2. Section X, Termination of Policy, is amended further to add the following paragraphs at the end of the section:

   No notice of nonrenewal by the Company is required in any of the following situations:

   (1) the transfer of, or renewal of, this Policy without a change in its terms or conditions or the rate on which the premium is based to another insurer within the Chubb Group of Insurance Companies;
   (2) if this Policy is extended for ninety (90) days or less, provided that the Company has given notice of nonrenewal before such extension;
   (3) if the **Parent Organization** has obtained replacement coverage or has agreed, in writing, within sixty (60) days of the termination of this Policy, to obtain such coverage;
   (4) if the **Parent Organization** requests a change in the terms or conditions or risks covered by this Policy within sixty (60) days before the end of the **Policy Period**;
   (5) if this Policy is for a period of no more than sixty (60) days and the Company notifies the **Parent Organization** at the time of issuance that it may not be renewed; or
   (6) if the Company has made a written offer to the **Parent Organization**, within the required time period for doing so under this Policy, to renew this Policy under changed terms or conditions or at a changed premium rate.

   The Company may condition renewal of this Policy upon a reduction in limits, elimination of coverages, increase in retentions or increase of more than twenty-five percent (25%) in the rate upon which the premium is based, by mailing or delivering notice of such renewal change(s) to the **Parent Organization** at the mailing address shown on this Policy and to the agent of record, if any, at least sixty (60) but not more than one hundred twenty (120) days before the expiration of the **Policy Period**.

The Policy will be deemed to have been amended to the extent necessary to effect the purposes and intent of this Amendatory Endorsement.

The regulatory requirements set forth in this Amendatory Endorsement shall supercede and take precedence over any provisions of the Policy or any endorsement to the Policy, whenever added, that are inconsistent with or contrary to the provisions of this Amendatory Endorsement, unless such Policy or endorsement provisions comply with the applicable insurance laws of the State of California.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

CALIFORNIA PREMIUM ENDORSEMENT

In consideration of the premium charged, it is agreed that in compliance with the ruling of the Commissioner of Insurance of the State of California and the opinion of the Attorney-General of that state requiring that the premium for all bonds or policies be endorsed thereon, the basic premium charged for the attached bond/policy for the period

From: <EFFECTIVEDATE>

To: <EXPIRDATE>

Is: <PREMIUMSPELLEDOUT> ($<PREMIUM>)

The Policy will be deemed to have been amended to the extent necessary to effect the purposes of this Amendatory Endorsement.

The regulatory requirements set forth in this Amendatory Endorsement shall supersede and take precedence over any provisions of the Policy or any endorsement to the Policy, whenever added, that are inconsistent with or contrary to the provisions of this Amendatory Endorsement, unless such Policy or endorsement provisions comply with the applicable insurance laws of the state of California.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT

<COVSECT>

Effective date of
this endorsement: <TRXEFFDATE>

<CARRNAME>

Endorsement No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

CALIFORNIA AMENDATORY ENDORSEMENT
TO THE DIRECTORS & OFFICERS AND ENTITY LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that:

1. Subparagraph (B) in the definition of **Loss** as set forth in of Section IV, Definitions, is deleted and replaced with the following:

   (B) punitive, exemplary or multiplied damages, if and to the extent such damages are insurable under the law of the jurisdiction most favorable to the insurability of such damages, provided such jurisdiction has a substantial relationship to the **Insured**, the Company, or to the **Claim** giving rise to such damages; and provided further that, if such jurisdiction is the State of California, then **Loss** does not include punitive, exemplary or multiplied damages;

The Policy will be deemed to have been amended to the extent necessary to effect the purposes and intent of this Amendatory Endorsement.

The regulatory requirements set forth in this Amendatory Endorsement shall supercede and take precedence over any provisions of the Policy or any endorsement to the Policy, whenever added, that are inconsistent with or contrary to the provisions of this Amendatory Endorsement, unless such Policy or endorsement provisions comply with the applicable insurance laws of the State of California.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT

<COVSECT>

Effective date of
this endorsement: <TRXEFFDATE>

<CARRNAME>

Endorsement No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

CALIFORNIA AMENDATORY ENDORSEMENT
TO THE EMPLOYMENT PRACTICES LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that:

1. Subparagraph (B)(1) in the definition of **Loss** as set forth in of Section II, Definitions, is deleted and replaced with the following:

   (B) (1) punitive, exemplary or multiplied damages, if and to the extent such damages are insurable under the law of the jurisdiction most favorable to the insurability of such damages, provided such jurisdiction has a substantial relationship to the **Insured**, the Company, or to the **Claim** giving rise to such damages; and provided further that, if such jurisdiction is the State of California, then **Loss** does not include punitive, exemplary or multiplied damages; or

The Policy will be deemed to have been amended to the extent necessary to effect the purposes and intent of this Amendatory Endorsement.

The regulatory requirements set forth in this Amendatory Endorsement shall supercede and take precedence over any provisions of the Policy or any endorsement to the Policy, whenever added, that are inconsistent with or contrary to the provisions of this Amendatory Endorsement, unless such Policy or endorsement provisions comply with the applicable insurance laws of the State of California.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT

<COVSECT>

Effective date of
this endorsement: <TRXEFFDATE>

<CARRNAME>

Endorsement No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

CALIFORNIA AMENDATORY ENDORSEMENT
TO THE FIDUCIARY LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that:

1. Subparagraph (A)(2) in the definition of **Loss** as set forth in of Section II, Definitions, is deleted and replaced with the following:

   (A) (2) punitive, exemplary or multiplied damages, if and to the extent such damages are insurable under the law of the jurisdiction most favorable to the insurability of such damages, provided such jurisdiction has a substantial relationship to the **Insured**, the Company, or to the **Claim** giving rise to such damages; and provided further that, if such jurisdiction is the State of California, then **Loss** does not include punitive, exemplary or multiplied damages;

The Policy will be deemed to have been amended to the extent necessary to effect the purposes and intent of this Amendatory Endorsement.

The regulatory requirements set forth in this Amendatory Endorsement shall supercede and take precedence over any provisions of the Policy or any endorsement to the Policy, whenever added, that are inconsistent with or contrary to the provisions of this Amendatory Endorsement, unless such Policy or endorsement provisions comply with the applicable insurance laws of the State of California.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement: <TRXEFFDATE>

Company: <CARRNAME>

Endorsement No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

AMEND BODILY INJURY/PROPERTY DAMAGE EXCLUSION ENDORSEMENT

In consideration of the premium charged, it is agreed that Exclusion (A)(3), Bodily Injury/Property Damage, of this Coverage Part is deleted and replaced with the following:

(3) Bodily Injury/Property Damage
based upon, arising from, or in consequence of any bodily injury, mental anguish, humiliation, emotional distress, sickness, disease or death of any person or damage to or destruction of any tangible property including loss of use thereof whether or not it is damaged or destroyed, provided that this Exclusion (A)(3) shall not apply to **Loss** for any mental anguish, humiliation or emotional distress asserted in an employment-related **Claim** afforded coverage under Insuring Clauses (A), Individual Non-Indemnified Liability Coverage, or (B), Individual Indemnified Liability Coverage;

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

INTELLECTUAL PROPERTY EXCLUSION ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) The Company shall not be liable under this Coverage Part for **Loss** on account of any **Claim** based upon, arising from or in consequence of any infringement of copyright, patent, trademark, trade name, trade dress, or service mark; any misappropriation of ideas, trade secrets or other intellectual property rights; any false patent marking; or any violation of a federal, state, local or foreign intellectual property law, or a rule or regulation promulgated under any such intellectual property law.

(2) Exclusion (B)(6)(b), Intellectual Property, of this Coverage Part is deleted.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

RECOVERIES SECTION ADDED ENDORSEMENT

In consideration of the premium charged, it is agreed that this Coverage Part is amended to include the following section:

RECOVERIES

(A) Recoveries for any loss covered under this Coverage Part, whether effected by the Company or by an **Insured**, less the cost of recovery, shall be distributed as follows:

(1) first, to an **Insured** for the amount of such loss, otherwise covered, in excess of the applicable Limits of Liability;

(2) second, to the Company for the amount of such loss paid to an **Insured** as covered loss;

(3) third, to an **Insured** for the Retention applicable to such loss;

(4) fourth, to an **Insured** for the amount of such loss not covered under this coverage section.

(B) Recovery from reinsurance or indemnity of the Company shall not be deemed a recovery hereunder.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

SERVICE INDUSTRY ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) The Company shall not be liable under this Coverage Part for **Loss** on account of any **Claim** based upon, arising from, or in consequence of the rendering of, or failure to render, any **Professional Services** by an **Insured**; provided that this Exclusion shall not apply to any **Loss** on account of any securities **Claim**, securityholder derivative demand, securityholder derivative action or **Specific Management Claim** (as defined in Paragraph (2) of this endorsement).

(2) Section IV, Definitions, of this Coverage Part, is amended to include the following definition:

Specific Management Claim means any **Claim** made against an **Executive** for a **Wrongful Act** by such **Executive** in connection with the **Executive's** management of any **Organization** or **Subsidiary**, of an **Organization**. However, **Specific Management Claim** shall not mean, and in no event shall any coverage be afforded herein for, any **Claim** made against an **Executive** for a **Wrongful Act** by such **Executive** in the direct offering of, or in supervising or assisting an **Insured Person** in direct offering of, any **Professional Services**.

(3) Exclusion (B)(6)(c), Professional Services, of this Coverage Part is deleted.

(4) Subsection (A) of Section IX, Allocation, of this Coverage Part is deleted and replaced with the following:

(A) **Defense Costs**: one hundred percent (100%) of **Defense Costs** incurred by such **Insured** on account of such **Claim** shall be covered **Loss**, provided that the foregoing shall not apply with respect to any **Insured** for whom coverage is excluded pursuant to paragraph (1) of this endorsement or Exclusion (B)(1), Contract, Exclusion (B)(2), Employment Practices, or Subsection XIII(C), Representations and Severability. Such **Defense Costs** shall be allocated between covered **Loss** and non-covered loss based on the relative legal exposures of the parties to such matters; and

(5) Solely with respect to the coverage afforded under this endorsement, Section XI, Other Insurance or Indemnity, of this Coverage Part is amended to add the following:

Subject to the provisions of this endorsement, no coverage shall be available for any **Loss** until after any or all coverage available under any policy providing professional liability or errors and omissions coverage has been exhausted.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement: <TRXEFFDATE>

Company: <CARRNAME>

Endorsement No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

PRIVACY AND DATA BREACH EXCLUSIONS ENDORSEMENT

In consideration of the premium charged, it is agreed that:

1. Exclusion (A)(2) of Section III, Exclusions, of this Coverage Part is deleted.

2. No coverage will be available for:

   (i) loss involving the disclosure of an **Insured's** or another entity or person's confidential or personal information while in the care, custody or control of an **Insured** including, but not limited to, patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any similar type of nonpublic information;

   (ii) loss involving the use of another entity or person's confidential or personal information while in the care, custody or control of an **Insured** including, but not limited to, patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any similar type of nonpublic information; or

   (iii) fees, costs, fines, penalties or any other expenses incurred by an **Insured** which result, directly or indirectly, from the access to or disclosure of another entity or person's confidential or personal information, including but not limited to, patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any similar type of nonpublic information,

   provided, however, that the above exclusions 2(i) and 2(ii) shall not apply to loss that is otherwise covered under any Insuring Clause other than Insuring Clause (J), Expense Coverage.

3. The definition of **Property** in Section II, Definitions, of this Coverage Part shall not include any **Insured's** or another entity or person's confidential or personal information.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

FALSE ADVERTISING ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) Subsection (B) of Section V, Exclusions, of this Coverage Part is amended to add the following:

False Advertising

based upon, arising from, or in consequence of any false advertising, misrepresentation in advertising or unfair or deceptive trade practices, with respect to the advertising of the **Insured's** own goods, publications or services; provided that this Exclusion shall not apply to **Loss** on account of any securities **Claim**, securityholder derivative demand or securityholder derivative action.

(2) Solely with respect to the coverage afforded under this endorsement, Subsection (A) of Section IX, Allocation, of this Coverage Part is deleted and replaced with the following:

(A) **Defense Costs**: one hundred percent (100%) of **Defense Costs** incurred by such **Insured** on account of such **Claim** shall be covered **Loss**, provided that the foregoing shall not apply with respect to any **Insured** for whom coverage is excluded pursuant to the Exclusion in paragraph (1) of this endorsement, False Advertising, Exclusion (B)(2), Employment Practices, or Subsection XIII(C), Representations and Severability. Such **Defense Costs** shall be allocated between covered **Loss** and non-covered loss based on the relative legal exposures of the parties to such matters; and

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

FIDUCIARY LIABILITY COVERAGE ENHANCEMENTS ENDORSEMENT
(FOREFRONT PORTFOLIO 3.0sm)

In consideration of the premium charged, it is agreed that solely with respect to this Fiduciary Liability Coverage Part, the following shall apply:

(1) **AMEND LIMIT OF LIABILITY (of the General Terms and Conditions)**

Subsection (A) of Section III. Limit of Liability, of the General Terms and Conditions, is amended to add the following paragraph:

With respect to the Fiduciary Liability Coverage Part and subject in all events to the Combined Maximum Aggregate Limit of Liability, if purchased, as set forth in Item 3 of the GTC Declarations, **Defense Costs** on account of all **Interviews** is part of, and not in addition to, the Maximum Aggregate Limit of Liability set forth in Item 2 of the FL Declarations and payment by the Company of such **Defense Costs** shall reduce and may exhaust such Limits of Liability.

(2) **AMEND INSURING CLAUSES**

Insuring Clause (A), Fiduciary Liability Coverage of Section I. Insuring Clauses, of this Coverage Part is deleted and replaced with the following:

(A) The Company shall pay, on behalf of an **Insured**, **Loss** on account of a **Claim** first made against the **Insured**:

(i) during the **Policy Period**, or, if exercised, during the Extended Reporting Period if applicable, for a **Wrongful Act** by the **Insured**, or by any natural person for whose **Wrongful Acts** the **Insured** is legally liable; or

(ii) that is a **Pre-Claim Investigation** or **Benefit Claim Denial**, if, at the **Insured's** option, it is reported to the Company in writing during the **Policy Period**.

(3) **INTERVIEW COVERAGE**

Interview Coverage

(A) The Company shall pay, on behalf of an **Insured Person**, **Defense Costs** incurred solely by such **Insured Person** on account of an **Interview** first made during the **Policy Period**, except to the extent that such **Defense Costs** have been paid or indemnified.

(B) The Company shall pay, on behalf of an **Organization** or a **Plan**, **Defense Costs** incurred solely by an **Insured Person** on account of an **Interview** first made during the **Policy Period**, to the extent the **Organization** or a **Plan** pays or indemnifies such **Defense Costs**; provided that the coverage afforded pursuant to this paragraph (3)(B) shall be subject to the Retention set forth in Item 3(A) of the FL Declarations.

(4) **AMEND DEFINITIONS**

Section II. Definitions, of this Coverage Part, is amended as follows:

A. Amend Definition of Claim

The definition of **Claim** is deleted and replaced with the following:

Claim means any:

(A) written demand for:

(1) monetary or non-monetary (including injunctive) relief; or

(2) arbitration or mediation,

against an **Insured** for a **Wrongful Act**, commenced by the first receipt of such demand by an **Insured**;

(B) proceeding, including any appeal therefrom, against an **Insured** for a **Wrongful Act**, commenced by:

(1) the service of a civil complaint or similar pleading;

(2) the filing of a notice of charges or the entry of a formal order of investigation in connection with a formal civil administrative or formal civil regulatory proceeding;

(3) solely with respect to a criminal proceeding: (a) an arrest; (b) the return of an indictment, information or similar document; or (c) the receipt of an official request for **Extradition**;

(C) written notice of commencement of a fact-finding investigation by the U.S. Department of Labor, the U.S. Pension Benefit Guaranty Corporation, or any similar governmental authority located outside the United States, including, the Pensions Ombudsman appointed by the United Kingdom Secretary of State for Work and Pensions or by the United Kingdom Occupational Pensions Regulatory Authority or any successor thereto, against any **Insured** for a **Wrongful Act**;

(D) investigation of an **Insured Person**, solely in his or her fiduciary capacity with respect to any **Sponsored Plan**, for a **Wrongful Act**, commenced by the **Insured Person's** receipt of a written document from an **Enforcement Unit** identifying such **Insured Person** as the target of an investigation, including a Wells Notice, target letter or search warrant;

(E) written request upon an **Insured Person** for witness testimony or document production, commenced by the service of a subpoena or other similar document compelling such testimony or production of documents in connection with any matter described in Subsections (A) through (D) above; provided that in such event the Company shall pay, on behalf of such **Insured Person**, **Defense Costs** incurred solely by such **Insured Person** in responding to such request;

(F) a written notice of commencement of a **Pre-Claim Investigation** or **Benefit Claim Denial**, if, at the **Insured's** option, it is reported to the Company in writing during the **Policy Period**; or

(G) a written request first received by an **Insured** to toll or waive a statute of limitations relating to a potential **Claim** as described in Subsections (A) through (C) above.

B. Amend Definition of Defense Costs

The definition of **Defense Costs** is deleted and replaced with the following:

Defense Costs means that part of **Loss** consisting of reasonable costs, charges, fees (including attorneys' fees, experts' fees, and the cost of **E-Discovery Specialist Services**) and expenses (other than regular or overtime wages, salaries, fees or benefits of the **Insured Persons**) incurred with the Company's prior written consent: (1) in investigating, defending, opposing or appealing any **Claim** or any **Voluntary Program Notice**, and the premium for appeal, attachment or similar bonds; or (2) as a result of an **Interview**.

C. Amend Definition of Insured Person

The definition of **Insured Person** is amended to add the following:

Insured Person shall also include any past **Employees** or **Executives** retained as a fiduciary or plan consultants to the **Sponsored Plan**; provided that for the purposes of determining an **Organization's** indemnification obligation to any such consultants, each consultant shall be deemed a director or officer of the **Organization**. Accordingly, the **Organization** shall be deemed to have granted indemnification to each consultant to the fullest extent permitted by statutory or common law to the same extent as any director or officer of the **Organization.**

Insured Person shall not include any individual in his or her capacity as an employee of any third party, including a service provider.

D. Amend Definition of Loss

The definition of **Loss** is amended as follows:

(1) Paragraph (A) is amended to include the following:

(6) claimant's attorney's fees awarded by a court pursuant to Section 502(g) of the Employee Retirement Income Security Act of 1974, as amended, against an **Insured**; and

(7) reasonable fees and expenses of an independent fiduciary retained to review a proposed settlement of a covered **Claim** (including reasonable and necessary fees and expenses of any law firm hired by such independent fiduciary to facilitate that review of such proposed settlement of a covered **Claim**); and

(2) the following Paragraph (C) is added after Paragraph (B):

(C) for purposes of the Interview Coverage, **Defense Costs**,

(3) The section entitled "provided that **Loss** does not include any portion of such amount that constitutes any" is amended as follows:

(a) Paragraph (7) is deleted and replaced with the following:

(7) (a) benefits due, or to become due, or that portion of any settlement or award in an amount equal to such benefits, under any **Plan**, or (b) benefits which would be due, or that portion of any settlement or award in an amount equal to such benefits, under any **Plan** if such **Plan** complied with all applicable law, including loss resulting from the payment of plaintiff attorneys' fees based upon a percentage of such benefits or payable from a common fund established to pay such benefits, except to the extent that:

(i) an **Insured** is a natural person and the benefits are payable by such **Insured** as a personal obligation, and recovery for the benefits is based upon a covered **Wrongful Act**; or

(ii) a **Claim** made against an **Insured**:

(a) alleges a loss to the **Plan** and/or to the accounts of such **Plan's** participants by reason of a change in the value of the investments held by such **Plan**, regardless of whether the amounts sought or recovered by the plaintiffs in such **Claim** are characterized by plaintiffs as "benefits" or held by a court as "benefits"; or

(b) seeks amounts that would have been due, but for the failure to enroll in the **Plan**, as set forth in Paragraph (C) of the definition of **Administration**, unless and to the extent the **Plan** is self-funded;

(b) The following paragraph is added:

(8) amount constituting any contribution or that portion of any settlement or award in an amount equal to such amount constituting any contribution that is owed to or to fund any **Plan**, except to the extent that an **Insured** is a natural person and the contribution is payable by such **Insured** as a personal obligation, and recovery for the contribution is based upon a covered **Wrongful Act**.

E. <u>Amend Definition of Wrongful Act</u>

The definition of **Wrongful Act** is deleted and replaced with the following:

Wrongful Act means any actual or alleged:

(A) breach of the responsibilities, obligations or duties imposed by **ERISA** upon fiduciaries of the **Sponsored Plan** committed, attempted or allegedly committed or attempted by an **Insured** while acting in the **Insured's** capacity as a fiduciary;

(B) negligent act, error or omission in the **Administration** of any **Plan** committed, attempted or allegedly committed or attempted by an **Insured**;

(C) matter, other than as set forth in (A) or (B) above, claimed against an **Insured** solely by reason of the **Insured's** service as a fiduciary of any **Sponsored Plan**; or

(D) act, error or omission committed, attempted or allegedly committed or attempted by an **Insured**, solely in such **Insured's** settlor capacity with respect to establishing, amending, terminating or funding a **Sponsored Plan**.

F. <u>Add Definitions</u>

The following definitions are added:

Benefit Claim Denial means an appeal of an adverse benefits determination by an **Insured** pursuant to the U.S. Department of Labor's claim procedure regulation 29 C.F.R. Section 2560.503-1(h) or any similar claim procedures pursuant to applicable law.

E-Discovery means the review, development, collection, storage, organization, cataloging, preservation and/or production of electronically stored information.

E-Discovery Specialist Services means solely the following services performed by an **E-Specialist Firm**:

(A) assisting the **Insured** with managing and minimizing the internal and external costs associated with **E-Discovery**;

(B) assisting the **Insured** in developing or formulating an **E-Discovery** strategy which shall include interviewing qualified and cost effective **E-Discovery** vendors;

(C) serving as project manager, advisor and/or consultant to the **Insured**, defense counsel and the Company in executing and monitoring the **E-Discovery** strategy; and

(D) such other services provided by the **E-Specialist Firm** that the **Insured**, Company, and **E-Specialist Firm** agree are reasonable and necessary given the circumstances of the **Claim**.

E-Specialist Firm means the e-discovery consultant firms approved by the Company.

Enforcement Unit means any federal, state, local or foreign law enforcement or governmental authority (including, the U.S. Department of Justice, the U.S. Securities and Exchange Commission and any attorney general) or the enforcement unit of any securities exchange or similar self-regulatory body however, **Enforcement Unit** shall not include the U.S. Department of Labor, the U.S. Pension Benefit Guaranty Corporation, or any similar governmental authority located outside the United States, including, the Pensions Ombudsman appointed by the United Kingdom Secretary of State for Work and Pensions or by the United Kingdom Occupational Pensions Regulatory Authority or any successor thereto.

Interview means a request for an interview or meeting with, or a sworn statement from, an **Insured Person** by:

(A) an **Enforcement Unit** in connection with:

(1) such **Insured Person** acting solely in his or her capacity as a fiduciary of a **Sponsored Plan**; or
(2) a **Sponsored Plan's** business activities; or

(B) an **Organization** in connection with an inquiry or investigation of the **Sponsored Plan** by an **Enforcement Unit** commenced by the first receipt of such request by such **Insured Person**,

provided that **Interview** does not include: (i) any request for document production or discovery; (ii) any request by an **Enforcement Unit** that is part of any routine or regularly scheduled **Enforcement Unit** oversight, compliance, audit, inspection or examination; or (iii) any request that is part of an employment-related investigation or claim.

Pre-Claim Investigation means a fact-finding investigation which does not contain any allegation of a **Wrongful Act** in writing, commenced by the U.S. Department of Labor, the U.S. Pension Benefit Guaranty Corporation, or any similar governmental authority located outside the United States, including, the Pensions Ombudsman appointed by the United Kingdom Secretary of State for Work and Pensions or by the United Kingdom Occupational Pensions Regulatory Authority or any successor thereto.

(5) **AMEND EXCLUSIONS**

A. <u>Delete Pollution Exclusion</u>

Exclusion (D) Pollution, of Section III. Exclusions, of this Coverage Part, is deleted.

B. <u>Add Exclusions</u>

With respect to the Interview Coverage as set forth in paragraph (3) of this endorsement, the following exclusions shall apply:

The Company shall not be liable for **Defense Costs** on account of any **Interview**:

(1) based upon, arising from or in consequence of any fact, circumstance, situation, transaction, event or **Wrongful Act** that, before the inception date set forth in Item 2(A), Policy Period, of the GTC Declarations, was the subject of any notice accepted under any fiduciary liability or employee benefit liability policy or coverage section of which this coverage section is a direct or indirect renewal or replacement; or

(2) based upon, arising from or in consequence of any written demand, suit, or other proceeding pending against, or order, decree or judgment entered for or against any **Insured**, on or prior to the applicable Pending or Prior Proceedings Date set forth in Item 4 of the FL Declarations, or the same or substantially the same fact, circumstance or situation underlying or alleged therein.

(6) **AMEND REPORTING**

Section VI. Reporting, of this Coverage Part, is amended as follows:

A. Solely with respect to Paragraph (A), including any endorsements to this policy amending such Paragraph (A), the reference to "**Claim**" therein shall not include a **Pre-Claim Investigation** or **Benefit Claim Denial**.

B. Paragraph (D) is deleted and replaced with the following:

(D) An **Insured** shall, as a condition precedent to exercising any right to coverage under this Coverage Part, give to the Company such information, assistance and cooperation as the Company may reasonably require, and shall include in any notice under Subsections (A), (B) or (C) above, a description of the **Claim**, circumstances, **Interview**, or **Voluntary Program Notice**, (including the facts, circumstances or situations alleged therein), the nature of the alleged **Wrongful Act** or circumstances, the nature of the alleged or potential damage, the names of the actual or potential claimants, and the manner in which such **Insured** first became aware of the **Claim**, circumstances, **Interview**, or alleged **Wrongful Act** or **Voluntary Program Notice**.

C. The following Paragraph is added as follows:

If during the **Policy Period** an **Insured** gives written notice to the Company of an **Interview**, then any **Claim** subsequently arising from such **Interview**, shall be deemed to have been first made during the **Policy Year** in which the **Interview** was first given by an **Insured** to the Company, provided any such subsequent **Claim** is reported to the Company as soon as practicable, but in no event later than ninety (90) days after the **Claim** is made.

(7) **AMEND RETENTION**

Section VII. Retention and Presumptive Indemnification, of this Coverage Part, is amended to add the following paragraphs:

No Retention shall apply to the first $50,000 in **Defense Costs** incurred for **E-Discovery Specialist Services** on account of a **Claim**.

Any payment by an **Organization** of a Retention on account of an **Interview** shall reduce any Retention due from the **Organization** on account of a **Claim** subsequently afforded coverage under Insuring Clause (A), Fiduciary Liability Coverage, that is based upon, arising from or in consequence of any fact or circumstances that was the subject of such **Interview**.

(8) **AMEND DEFENSE AND SETTLEMENT**

Section VIII. Defense and Settlement, of this Coverage Part is amended as follows:

A. Subsection (C) is deleted and replaced with the following:

(C) It shall be the duty of the **Insureds** and not the duty of the Company to defend any **Voluntary Program Notice** and any **Interview**, provided that the **Insureds** shall select as defense counsel for such **Voluntary Program Notice** or **Interview** a law firm included in the Company's then current list of approved fiduciary liability defense firms for the jurisdiction applicable to such **Voluntary Program Notice** or **Interview**.

B. Subsection (E) is amended to include the following:

However, the Company may, in its sole discretion, waive the foregoing requirement with respect to **Defense Costs** incurred within ninety (90) days prior to the reporting of a **Claim** pursuant to Section VI. Reporting, of this Coverage Part.

C. Subsection (G) is amended to include the following:

The failure of any **Insured Person** to give the Company the information, assistance or cooperation as it may reasonably require shall not impair the rights of any other **Insured Person** under this Coverage Part.

D. The following paragraphs are added:

Any advancement of **Defense Costs** shall be repaid to the Company by the **Insureds**, severally according to their respective interests, if and to the extent it is determined that such **Defense Costs** are not insured under this coverage section.

If an **Organization** refuses in writing, or fails within sixty (60) days of an **Insured Person's** written request for indemnification, to advance, pay or indemnify an **Insured Person** for **Loss** on account of a **Claim**, then, upon the **Insured Person** reporting the **Claim** pursuant to Section VI. Reporting, of this Coverage Part, the Company shall advance **Defense Costs** until such time that the **Organization** accepts the **Insured Person's** request for indemnification or the applicable Retention has been satisfied.

Any advancement of **Defense Costs** by the Company shall reduce the Limit of Liability set forth in Item 2 of the FL Declarations. If the Company recovers any such **Defense Costs** paid, the amount of such **Defense Costs** less all costs incurred by the Company to obtain such recovery shall be reinstated to the Limit of Liability set forth in Item 2 of the FL Declarations.

Notwithstanding Subsection (E) above, with respect to any **Claim** reported pursuant to Section VI. Reporting, of this Coverage Part, the **Insureds** may settle a **Claim** (inclusive of **Defense Costs**) without the Company's prior consent if the amount of such settlement does not exceed the amount of the applicable Retention. However, the Company shall not be liable for any settlement or **Defense Costs** in excess of the amount of the applicable Retention to which it has not consented to in writing. The **Insureds** shall submit to the Company all requested information with respect to any **Claim** settled pursuant to this paragraph upon either the underwriting of a renewal of this Coverage Part or upon expiration of this Coverage Part, whichever first occurs.

(9) AMEND OTHER INSURANCE

The following sentence is added after the first paragraph of Section XI. Other Insurance, of this Coverage Part, as a separate paragraph:

In addition to, and not in limitation of, the above paragraph, this Coverage Part shall be specifically excess of, and shall not contribute with, any insurance policy for pollution liability or environmental liability, including any general liability policy.

(10) INDEMNIFICATION AND SUBROGATION

Solely with respect to this Coverage Part, Section VIII. Subrogation, of the General Terms and Conditions of this Policy is deemed deleted and replaced with the following:

Indemnification And Subrogation

This Policy has been issued to the **Parent Organization** with the understanding and agreement that each **Organization** agrees to fulfill its indemnification obligations to the fullest extent permitted by: (i) any statutory or common law, or (ii) any contract or agreement providing an indemnification obligation exceeding any such statutory or common law, to any **Insured Person**. If the Company pays as **Loss** any indemnification owed to any **Insured Person** by any **Organization**, the Company does not waive or compromise any of its rights to recover such **Loss** from such **Organization**.

In the event of any payment of **Loss** under this policy, the Company shall be subrogated to the extent of such payment of **Loss** to all of the **Insureds'** rights of recovery, including any such right to indemnification from any **Organization**, other insurance carrier or other source. As a condition precedent to the Company's payment of any **Loss** under this policy, the **Insureds'** agree to execute all papers reasonably required and take all reasonable actions to secure and preserve the Company's rights, including the execution of such documents necessary to enable the Company effectively to bring suit or otherwise pursue subrogation rights in the name of the **Insureds**, including any action against any **Organization** for indemnification.

(11) **CANCELLATION/EXTENDED REPORTING TIME PERIOD LIBERALIZATION**

In the event that any time period relating to notice of cancellation or extended reporting period election provided under this Coverage Part is less than any such time period required by applicable state law, the Company shall apply the applicable state law.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

JOBS ACT ENDORSEMENT

In consideration of the premium charged, it is agreed that

(1) Exclusion (A)(7), Publicly Traded Securities, of this Coverage Part shall not apply to **Loss** on account of any **Claim**:

(A) based upon, arising from or in consequence of any general solicitation or general advertising by or on behalf of any **Organization** permitted pursuant to Title II, Access to Capital for Job Creators, of the JOBS Act (as defined below);

(B) based upon, arising from or in consequence of any offering, sale or purchase of securities that qualifies for a Securities Act registration exemption created pursuant to Title III, Crowdfunding, of the JOBS Act; or

(C) based upon, arising from or in consequence of any offering, sale or purchase of securities that qualifies for a Securities Act registration exemption created pursuant to Title IV, Small Company Capital Formation, of the JOBS Act ("Title IV Small Company Capital Formation Claim").

(2) The Company's maximum aggregate Limit of Liability for **Loss** on account of all Title IV Small Company Capital Formation Claims shall be $250,000 which amount shall be part of, and not in addition to, the Company's Maximum Aggregate Limit of Liability for this Coverage Part set forth in Item 2 of the D&O Declarations.

(3) For purposes of this Endorsement, JOBS Act means the Jumpstart Our Business Startups Act, any amendments thereto and any rules or regulations promulgated thereunder.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

SOCIAL ENGINEERING FRAUD COVERAGE ENDORSEMENT

In consideration of the premium charged, it is agreed that solely with respect to the coverage afforded under this endorsement, the following shall apply:

(1) Item 2. of the Crime Declarations is amended to include the following:

Item 2. Limits of Liability and Retentions:

Insuring Clauses Applicable to this Coverage Part:	Limits of Liability:	Retentions:
Social Engineering Fraud Coverage:	<PSOCENGLIMIT>	<PSOCENGDEDUCT>

(2) The following Insuring Clause is added:

Social Engineering Fraud Coverage Insuring Clause

The Company shall pay the **Parent Organization** for loss resulting from an **Organization** having transferred, paid or delivered any **Money** or **Securities** as the direct result of **Social Engineering Fraud** committed by a person purporting to be a **Vendor**, **Client**, or an **Employee** who was authorized by the **Organization** to instruct other **Employees** to transfer **Money** or **Securities.**

(3) Section II, Definitions, is amended to include the following terms:

Vendor means any entity or natural person that has provided goods or services to an **Organization** under a legitimate pre-existing arrangement or written agreement. However, **Vendor** does not include any financial institution, asset manager, broker-dealer, armored motor vehicle company, or any similar entity.

Social Engineering Fraud means the intentional misleading of an **Employee**, through misrepresentation of a material fact which is relied upon by an **Employee,** believing it be genuine.

(4) Section III, Exclusions, is amended as follows:

A. Exclusion (A)(11) is deleted.

B. Exclusion (A)(14) is deleted and replaced with the following:

(14) Authorized Representative

loss or damage due to **Theft, Forgery, Computer Fraud, Funds Transfer Fraud, Money Orders And Counterfeit Currency Fraud, Credit Card Fraud, Social Engineering Fraud**, or other fraudulent, dishonest or criminal act (other than **Robbery** or **Safe Burglary**) committed by any authorized representative of an **Insured**, whether acting alone or in collusion with others, provided that this Exclusion (A)(14) shall not apply to otherwise covered loss under Insuring Clauses (A), Employee Theft Coverage, or (I), Client Coverage, resulting from **Theft** or **Forgery** committed by an **Employee** acting alone or in collusion with such authorized representative.

C. The lead-in to Exclusion (B)(3) is deleted and replaced with the following:

(3) Insuring Clauses (B), Premises Coverage, (C), In Transit Coverage, (E), Computer Fraud Coverage, (F), Funds Transfer Fraud Coverage, Social Engineering Fraud Coverage Insuring Clause, for:

(5) No coverage will be available under Social Engineering Fraud Coverage Insuring Clause for:

(a) Cause(s) of loss

loss or damage due to **Theft** by an **Employee**, **Forgery**, **Computer Fraud**, **Funds Transfer Fraud**, **Money Orders and Counterfeit Currency Fraud** or **Credit Card Fraud;**

(b) Mail/Carrier For Hire

loss of or damage to **Money** or **Securities** while in the mail or in the custody of any carrier for hire, including but not limited to any armored motor vehicle company;

(c) Investments

loss due to any investment in **Securities**, or ownership in any corporation, partnership, real property, or similar instrument, whether or not such investment is genuine;

(d) Products or Services

loss due to the failure, malfunction, inadequacy or illegitimacy of any product or service;

(e) Performance Under Contract

loss due to the failure of any party to perform, in whole or in part, under any contract;

(f) Loans and Credit

loss due to the extension of any loan, credit or similar promise to pay;

(g) Gambling

loss due to any gambling, game of chance, lottery or similar game;

(h) Property

loss of or damage to any **Property;**

(i) Credit Card loss

loss due to any party's use of or acceptance of any credit card, debit card or similar instrument, whether or not genuine.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

____
Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

AMEND REPORTING ENDORSEMENT

In consideration of the premium charged, it is agreed that Paragraph (B)(1) of Section IV, Reporting, of this Coverage Part is deleted and replaced with the following:

(1) if this Coverage Part is renewed, 365 days after the end of the **Policy Period**,

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

PREDETERMINED RUN-OFF ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) The GTC Declarations is amended by adding the following:

Item 6. Run-Off Coverage Period:

(A)	Additional Period of One (1) Year:	<DISCPRDQ1>
	Additional Premium for One (1) Year:	<DISCPREM-1YR>
(B)	Additional Period of Three (3) Years:	<DISCPRD3>
	Additional Premium of Three (3) Years:	<DISCPREM-3YR>
(C)	Additional Period of Six (6) Years:	<DISCPRD6>
	Additional Premium of Six (6) Years:	<DISCPREM-6YR>

(2) The following Section is added as follows:

RUN-OFF COVERAGE PERIOD

With respect to any applicable **Liability Coverage Part**, if the **Parent Organization** gives the Company written notice of an acquisition as described in Subparagraphs (C)(1)(a) and (C)(1)(b) of Section VI, Changes in Exposure, as soon as practicable, but in no event later than the expiration date of the **Policy Period**, the Company shall provide the **Parent Organization** with up to a six (6) year extension of coverage solely for **Claims** for **Wrongful Acts** prior to such acquisition (the “Run-off Coverage Extension”). Such Run-off Coverage Extension shall be subject to additional terms and conditions as the Company shall require pursuant to an applicable Run-off Endorsement, and the payment of additional premium as set forth in Item 6 of the GTC Declarations. Such additional premium shall be reduced by the amount of the unearned premium from the date of the acquisition through the expiration date of the **Policy Period**.
If an **Insured** elects the terms and conditions of the Run-Off Coverage Extension, such Run-Off Coverage Extension shall replace any extension of coverage that would otherwise be available to the **Insureds** pursuant to Section V, Extended Reporting Period. No additional extension of coverage shall be permitted unless by mutual agreement of the Company and the **Parent Organization**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

ADD EMPLOYED LAWYER COVERAGE ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) Section IV, Definitions, of this Coverage Part is amended as follows:

(A) The following definitions are added to this Section:

Employed Lawyer means any **Insured Person** of the **Organization** who is admitted to practice law and who is or was employed as a lawyer for, and salaried by, the **Organization**.

Employed Lawyer Wrongful Act means act, error or omission committed, attempted, or allegedly committed or attempted by an **Employed Lawyer** in the rendering of, or failure to render, professional legal services for an **Organization** while in his or her capacity as a lawyer for such **Organization**.

(B) The definition of **Wrongful Act** is amended to include an **Employed Lawyer Wrongful Act**.

(2) The Company shall not be liable for **Loss** on account of any **Claim**:

(A) based upon, arising from, or in consequence of any act, error or omission in connection with any activities by such **Employed Lawyer** which:

(i) are not related to such **Employed Lawyer's** employment with the **Organization**;

(ii) are not rendered on the behalf of, for, or to the **Organization**; or

(iii) are performed by the **Employed Lawyer** for others for a fee;

(B) based upon, arising from, or in consequence of any **Employed Lawyer Wrongful Act** while the **Employed Lawyer** was not employed as a lawyer by the **Organization**; or

(c) based upon, arising from, or in consequence of any activities by the **Employed Lawyer** as an officer or director of any entity other than the **Organization**.

(3) The Company's maximum liability under this Coverage Part for all **Loss** on account of all **Claims** for all **Employed Lawyer Wrongful Acts** shall be <AMOUNT>, which amount is part of and not in addition to the Maximum Aggregate Limit of Liability set forth in Item 2 of the D&O Declarations.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

____
Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

INTERVIEW COVERAGE AND AMENDED DEFINITION OF CLAIM ENDORSEMENT

In consideration of the premium charged, it is agreed that this Coverage Part is amended as follows:

(1) **INTERVIEW COVERAGE**

(A) The Company shall pay, on behalf of an **Insured Person**, **Defense Costs** incurred solely by such **Insured Person** on account of an **Interview** first made during the **Policy Period**, or the Extended Reporting Period, if applicable, to the extent that such **Defense Costs** are not indemnified by the **Organization**.

(B) The Company shall pay, on behalf of an **Organization**, **Defense Costs** incurred solely by an **Insured Person** on account of an **Interview** first made during the **Policy Period**, or the Extended Reporting Period, if applicable, to the extent the **Organization** indemnifies such **Insured Person** for such **Defense Costs.**

(2) **AMEND DECLARATIONS**

Item 4 of the D&O Declarations is amended to add the following:

Interview Coverage (A): None

Interview Coverage (B): <RETENTION>

(3) **AMEND DEFINITIONS**

Section IV, Definitions, is amended as follows:

(a) The definition of **Claim** is deleted and replaced with the following:

Claim means any:

(A) written demand (other than (i) a securityholder derivative demand, (ii) **Interview**, or (iii) subpoena or similar document) first received by an **Insured** for monetary or non-monetary relief, including injunctive relief;

(B) civil proceeding commenced by the service of a complaint or similar pleading, or any foreign equivalent thereof;

(C) criminal proceeding commenced by: (i) an arrest; (ii) a return of an indictment, information or foreign equivalent; or (iii) official request for **Extradition**;

(D) administrative or regulatory proceeding commenced by the service of a notice of charges or foreign equivalent; or

(E) arbitration or mediation proceeding commenced by receipt of a demand for arbitration or a demand for mediation,

against an **Insured** for a **Wrongful Act**, including any appeal therefrom;

(F) investigation by an **Enforcement Unit** against an **Insured Person** for a **Wrongful Act**, commenced by the service of a written request from such **Enforcement Unit** upon an **Insured Person** compelling witness testimony or document production and identifying such **Insured Person** as the target of such investigation, including a subpoena, civil investigative demand, grand jury subpoena, search warrant or target letter; provided that the Company shall take into reasonable consideration all extrinsic evidence presented by the **Insured** when determining whether such written request identifies such **Insured Person** as a target of such investigation; or

(G) written request first received by an **Insured** to toll or waive a statute of limitations relating to a potential **Claim** described in Subsections (A) through (F) above.

(b) The definition of **Claim** shall not include an **Interview**.

(c) The definition of **Defense Costs** is amended to add the following:

Defense Costs also means the reasonable costs, charges, fees (including attorneys' fees and experts' fees) and expenses (other than regular or overtime wages, salaries, fees or benefits of **Insured Persons**) incurred as a result of an **Interview**.

(d) The definition of **Enforcement Unit** is added as follows:

Enforcement Unit means any federal, state, local or provincial law enforcement or governmental authority worldwide (including the U.S. Department of Justice or any attorney general).

(e) The definition of **Interview** is added as follows:

Interview means a request for an interview, deposition or meeting with, or a sworn statement from, an **Insured Person** by:

(A) an **Enforcement Unit** in connection with: (1) such **Insured Person** acting in his or her capacity as such; or (2) an **Organization's** business activities;

(B) an **Organization**, the Board of Directors of an **Organization** or a committee of such Board of Directors in connection with: (1) an inquiry or investigation of the **Organization** by an **Enforcement Unit**; or (2) a securityholder derivative demand, commenced by the first receipt of such request by such **Insured Person**,

provided that an **Interview** does not include: (a) any request for document production or discovery for information in the possession or control of an **Organization** or any other party other than such **Insured Person**; (b) any request by an **Enforcement Unit** that is part of any routine or regularly scheduled **Enforcement Unit** oversight, compliance, audit, inspection or examination; or (c) any request by an **Enforcement Unit** that is part of an employment-related investigation or claim.

(f) Subsection (4) of the definition of **Loss** shall not apply to any coverage afforded by Paragraph (1) of this Endorsement.

(4) **AMEND EXCLUSIONS**

All Exclusions set forth in Section V(A), Exclusions Applicable To All Insuring Clauses, and any other exclusions added by endorsement, shall also apply to any **Defense Costs** coverage afforded under the **Interview** Coverage set forth above.

(5) **AMEND RETENTION**

Section VII, Retention and Presumptive Indemnification, is amended to add the following:

Any payment by an **Organization** of a Retention on account of an **Interview** shall reduce any Retention due from the **Organization** on account of a **Claim** subsequently afforded coverage under Insuring Clause (B), Individual Indemnified Liability Coverage, that is based upon, arising from or in consequence of any fact or circumstance that was the subject of such **Interview**.

(6) **AMEND REPORTING**

Subsection (B) of Section VI, Reporting, is deleted and replaced with the following:

(B) If during the **Policy Period**, or any applicable Extended Reporting Period, an **Insured** becomes aware of circumstances which could give rise to a **Claim** or an **Interview** and gives written notice of such circumstances or **Interview** to the Company, then any **Claim** subsequently arising from such circumstances or **Interview** shall be deemed made against the **Insured** during the **Policy Year** in which such circumstances or **Interview** were first reported to the Company, provided any such subsequent **Claim** is reported to the Company as soon as practicable, but in no event later than 90 days after the chief executive officer, chief financial officer, in-house general counsel or any person with the responsibility for the management of insurance claims (or any equivalent position to any of the foregoing) of an **Organization** becomes aware of such **Claim**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

AMEND DEFENSE AND SETTLEMENT ENDORSEMENT

In consideration of the premium charged, it is agreed that Subsection (F) of Section VI, Defense and Settlement, of this Coverage Part is deleted and replaced with the following:

(F) The **Insureds** agree to provide the Company with all information, assistance and cooperation which the Company reasonably requests and agree to do nothing that may prejudice the Company's position or its potential or actual rights of recovery; provided that the failure of any **Insured Person** to give the Company such information, assistance or cooperation shall not impair the rights of any other **Insured Person** under this Coverage Part.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
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Issued to: <ACCTNAME>

VIOLATION OF EMPLOYEE PRIVACY ENDORSEMENT
(DEFENSE COSTS ONLY WITH SUBLIMIT)

In consideration of the premium charged, it is agreed that solely with respect to this Employment Practices Liability Coverage Part, the following shall apply:

(1) The Company's maximum aggregate liability for all **Defense Costs** on account of all **Employment Claims** for a **Violation of Employee Privacy** shall be $250,000, which amount is part of, and not in addition to, the Company's Maximum Aggregate Limit of Liability set forth in Item 2 of the EPL Declarations.

(2) Section II, Definitions, of this Coverage Part is amended as follows:

(A) The definition of **Employment Practices Wrongful Act** is amended to include the following:

Employment Practices Wrongful Act shall also mean any actual or alleged **Violation of Employee Privacy** committed, attempted, or allegedly committed or attempted by an **Organization** or by an **Insured Person** while acting in his or her capacity as such.

(B) The following definitions are added as follows:

Violation of Employee Privacy means an **Organization's** failure to:

(i) secure an employee's **Record** from actual or potential unauthorized access by another person or by an organization which results in injury to such employee; or

(ii) provide notice as required by any state, federal or local statutory law or common law anywhere in the world to an employee whose **Record** was accessed or may have been accessed by an unauthorized person.

Record means an employee's first name or first initial, and last name, in combination with:

(i) their social security number, driver's license number or other personal identification number (including an employee identification number or student identification number);

(ii) their financial account number (including a bank account number, retirement account number, or healthcare spending account number);

(iii) their credit, debit or other payment card number; or

(iv) any individually identifiable health information, pursuant to the Health Insurance Portability and Accountability Act of 1996 (“HIPAA”), held by the **Organization**,

when any such information in (i) through (iv) above is intended by the **Organization** to be accessible only by persons or organizations specifically authorized by the **Organization** to have access to such information.

(3) The Company shall not be liable under this Coverage Part for **Loss**, other than **Defense Costs**, on account of any **Employment Claim** for a **Violation of Employee Privacy**.

(4) Section IX, Other Insurance, of this Coverage Part is amended to add the following:

Notwithstanding the foregoing, any **Loss** otherwise covered pursuant to the terms of this endorsement shall be specifically excess of and shall not contribute with any other valid and collectible insurance policy for cyber-related coverage, regardless of whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise.

(5) Nothing in this endorsement shall be construed to limit coverage otherwise provided under this Coverage Part.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

In consideration of the premium charged, it is agreed that:

A. If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed $100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds $100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

   "Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

   1. The act resulted in insured losses in excess of $5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and

   2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

B. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for any "loss" that is otherwise excluded under this Policy.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

GTC SUPPLEMENTAL ENDORSEMENT

In consideration of the premium charged, it is agreed that Subparagraph (C)(1)(c) of Section VI, Changes In Exposure, of the General Terms and Conditions is deleted.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

____

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

GTC ENHANCEMENT ENDORSEMENT

In consideration of the premium charged, it is agreed that the General Terms and Conditions are amended as follows:

(1) **AMEND DEFINITIONS**

Section II, Definitions, is amended to add the following definitions:

Foreign Jurisdiction means any jurisdiction, other than the United States or any of its territories or possessions.

Foreign Policy means the standard directors and officers liability, employment practices liability, fiduciary or pension trust liability policy, as applicable, (including all mandatory endorsements, if any) of the Company or any other member company of Chubb Limited ("Chubb") approved by Chubb to be sold within a **Foreign Jurisdiction** that provides coverage substantially similar to the coverage afforded under this Policy. If more than one such policy exists, then **Foreign Policy** means the standard policy most recently registered in the local language of the **Foreign Jurisdiction**, or if no such policy has been registered, then the policy most recently registered in that **Foreign Jurisdiction**. The term **Foreign Policy** shall not include any partnership managerial, pension trust or professional liability coverage.

(2) **AMEND BANKRUPTCY**

Section XI, Bankruptcy, is amended to add the following:

In the event a liquidation or reorganization proceeding is commenced by or against an **Organization** pursuant to the United States Bankruptcy Code, as amended, any similar law or any equivalent law thereof, the **Organization** and the **Insured Persons** hereby agree not to oppose or object to any efforts by the Company, the **Organization** or an **Insured Person** to obtain relief from any stay or injunction.

(3) **ADD FOREIGN LIBERALIZATION**

The following Section is added as follows:

Where legally permissible, for **Loss** from that portion of any **Claim** maintained in a **Foreign Jurisdiction** or to which the law of a **Foreign Jurisdiction** is applied, the Company shall apply to such **Claim** those terms and conditions (and related provisions) of the **Foreign Policy** in such **Foreign Jurisdiction** that are more favorable to such **Insured** than the terms and conditions of this Policy. However, this Section shall not apply to any provision of any policy addressing limits of liability (primary, excess or sublimits), retentions, other insurance, non-renewal, duty to defend, defense within or without limits, taxes, conformance to law or excess liability coverage, any claims made provisions, and any endorsement to this Policy that excludes or limits coverage for specific events or litigation or that specifically states that it will have worldwide effect.

(4) **ADD LIBERALIZATION**

The following Section is added as follows:

This Policy (together with all endorsements attached hereto, the “Renewal Policy”) has been issued as a renewal of <POLICYNAMENUMBER> issued to <INSUREDENTITY> by <WRITINGCO> (such policy together with all endorsements attached thereto, the “Expiring Policy”). The terms and conditions of either the Renewal Policy or the Expiring Policy, whichever in their entirety is more favorable to the **Insured**, shall govern with respect to any **Claim** first made during the **Policy Period** under any **Liability Coverage Part**, or any **Coverage Event** under any **Non-Liability Coverage Part**; provided however, that in all events, any applicable Retention and Limit of Liability of the Renewal Policy shall apply to all such **Claims** or **Coverage Events**.

In the event of any subsequent renewal of this Policy, this endorsement shall not be included in such subsequent renewal and all obligations of the Company under this endorsement shall terminate as of <POLICYEXPDATE> and be of no other force and effect.

(5) **ADD RECOVERY OF LIMITS**

The following Section is added as follows:

Notwithstanding any subrogation or other provision of the Policy, any recoveries of payments made by the Company shall be the sole property of the Company, but an amount equal to the amount of such recoveries, minus all costs incurred by the Company to obtain such recoveries, shall reinstate, in such amount and as of the date each recovery is received by the Company, the limits of liability of this Policy that were eroded or exhausted by payment under this Policy.

(6) **ALTERNATIVE DISPUTE RESOLUTION**

The following Section is added as follows:

The **Insureds** and the Company shall submit any dispute or controversy arising out of or relating to this Policy or the breach, termination or invalidity thereof to the alternative dispute resolution process (“ADR”) described below.

Either an **Insured** or the Company may elect the type of ADR process discussed below; provided, however, that the **Insured** shall have the right to reject the choice by the Company of the type of ADR process at any time prior to its commencement, in which case the choice by the **Insured** of ADR process shall control.

There shall be two choices of ADR process: (1) non-binding mediation administered by any mediation facility to which the Company and the **Insured** mutually agree, in which the **Insured** and the Company shall try in good faith to settle the dispute by mediation in accordance with the then-prevailing commercial mediation rules of the mediation facility; or (2) arbitration submitted to any arbitration facility to which the **Insured** and the Company mutually agree, in which the arbitration panel shall consist of three disinterested individuals. In either mediation or arbitration, the mediator or arbitrators shall have knowledge of the legal, corporate management, and insurance issues relevant to the matters in dispute. In the event of arbitration, the decision of the arbitrators shall be final and binding and provided to both parties, and the award of the arbitrators shall not include attorneys’ fees or other costs. In the event of mediation, either party shall have the right to commence arbitration in accordance with this section; provided, however, that no such arbitration shall be commenced until at least 60 days after the date the mediation shall be deemed concluded or terminated. In all events, each party shall share equally the expenses of the ADR process.

Either ADR process may be commenced in New York, New York or in the state indicated in Item 1 of the GTC Declarations as the principal address of the **Parent Organization**. The **Parent Organization** shall act on behalf of each and every Insured in connection with any ADR process under this Section.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

D&O ENHANCEMENT ENDORSEMENT

In consideration of the premium charged, it is agreed that the Directors & Officers and Entity Liability Coverage Part is amended as follows:

(1) **AMEND ADDITIONAL LIMIT OF LIABILITY DEDICATED FOR EXECUTIVES**

Subsection (C) of Section III, Additional Limit of Liability Dedicated For Executives, of this Coverage Part is deleted and replaced with the following:

(C) The Additional Limit of Liability Dedicated For Executives shall be excess of any valid and collectible insurance available that is specifically excess to this Coverage Part and such excess insurance must be completely exhausted by payment of loss, damages or defense costs thereunder before the Company shall have any obligation to make any payment on account of the Additional Limit of Liability Dedicated For Executives.

(2) **ADD SPECIAL EVENT MANAGEMENT COVERAGE**

The following Section is added as follows:

The Company shall pay, on behalf of the **Organization**, **Special Event Management Expenses** which the **Organization** becomes legally obligated to pay on account of a **Special Event** occurring during the **Policy Period** in an aggregate amount not to exceed $25,000 per **Policy Period**, which amount is part of, and not in addition to, the Maximum Aggregate Limit of Liability set forth in Item 2 of the D&O Declarations and no Retention shall apply to such amount.

(3) **ADD CORPORATE HOMICIDE INVESTIGATION COSTS COVERAGE**

The following Section is added as follows:

The Company shall pay, on behalf of a **Private UK Company**, **Corporate Homicide Investigation Costs** incurred by the **Private UK Company** as a result of the commencement and notice of a **Corporate Homicide Investigation** first received by the **Private UK Company** during the **Policy Period**, or, if exercised, during the Extended Reporting Period, in an aggregate amount not to exceed $100,000 per **Policy Period**, which amount is part of, and not in addition to, the Maximum Aggregate Limit of Liability set forth in Item 2 of the D&O Declaration and the same Retention set forth in Item 4(C) of the D&O Declarations shall apply to such amount.

(4) **AMEND DEFINITIONS**

Section IV, Definitions, is amended as follows:

(A) The definition of **Application** is deleted and all references to the term "**Application**" wherever found in this Coverage Part and any endorsements attached hereto, are replaced by the term "application".

(B) The definition of **Claim** shall not include a **Special Event**.

(C) The definition of **Defense Costs** is amended to add the following:

Defense Costs shall also include **Asset Protection Costs**.

(D) The last sentence of the definition of **Employee** is deleted and replaced with the following:

Employee shall not include any independent contractor other than a **Contractual Independent Contractor**.

(E) Subsection (A) of the definition of **Executive** is deleted and replaced with the following:

(A) a duly elected or appointed director, officer, member of the Advisory Board, member of the Board of Governors or in-house general counsel of any **Organization** incorporated in the United States of America;

(F) The definition of **Insured Person** is amended to include: (i) any **De Facto Director** of an **Organization**, but only with respect to a **De Facto Director Claim**; or (ii) any **Shadow Director** of an **Organization**, but only with respect to a **Shadow Director Claim**.

(G) The definition of **Loss** is amended as follows:

(i) Paragraph (2) of the definition of **Loss** is deleted and replaced with the following:

(2) amount uninsurable under the law pursuant to which this Coverage Part is construed; provided that the Company shall not assert that any amount attributable to violations of Sections 11, 12 or 15 of the Securities Act of 1933, as amended, is subject to this Paragraph (2), unless such amount is determined to be uninsurable in a final, non-appealable adjudication in any action or proceeding (other than a declaratory or equivalent action or proceeding brought by or against the Company);

(ii) The definition of **Loss** shall not include **Special Event Management Expenses**.

(H) The following definitions are added as follows:

Adverse Publicity means the publication of unfavorable information regarding the **Organization** which can reasonably be considered to materially reduce public confidence in the competence of the **Organization**. Such publication must occur in a report about an **Organization** appearing in:

(A) a daily newspaper of general circulation; or

(B) a radio or television news program.

Asset Protection Costs means that portion of **Defense Costs** constituting reasonable costs, charges, fees and expenses incurred by an **Executive**, with the Company's consent, to oppose any efforts by an **Enforcement Unit** to seize or otherwise enjoin the personal assets or real property of such **Executive**.

Contractual Independent Contractor means any natural person independent contractor while in the regular service of an **Organization** in the ordinary course of such **Organization's** business, pursuant to a written contract between such **Organization**, and either (A) such natural person independent contractor, or (B) any other entity acting on behalf of such natural person independent contractor, for services.

Corporate Homicide Investigation means a criminal investigation under the Corporate Manslaughter and Corporate Homicide Act, United Kingdom Statutes 2007, c. 19, sec. 1 et seq., ("Act") against a **Private UK Company**, commenced by the service upon or other receipt by such **Private UK Company** of a written notice or subpoena from the investigating authority of the United Kingdom identifying such **Private UK Company** as an entity whom a criminal proceeding under the Act may be commenced.

Corporate Homicide Investigation Costs means:

(A) **Defense Costs** incurred by a **Private UK Company** in defending a **Corporate Homicide Investigation**; and

(B) **Corporate Homicide Investigation Public Relation Expenses**,

provided **Corporate Homicide Investigation Costs** shall not include any amounts incurred for compliance with a Publicity Order pursuant to Section 10 of the Act.

Corporate Homicide Investigation Public Relation Expenses means the reasonable fees and related expenses of a public relations firm or consultant, crisis management firm or law firm, which the **Private UK Company** may, in the reasonable exercise of its discretion, engage with the written consent of the Company, not to be unreasonably withheld or delayed, in order to prevent or limit adverse effects or negative publicity which it is anticipated may arise from a **Corporate Homicide Investigation**.

De Facto Director means a natural person who is expressly recognized by United States law or by a court of competent jurisdiction as a "de facto" director of an **Organization** and, as result of such recognition, would incur liability as if such natural person were a duly elected or appointed director of such **Organization**.

De Facto Director Claim means any **Claim** first made against a De Facto Director during the **Policy Period** or any applicable Extended Reporting Period for **Wrongful Acts** by an **Insured**, other than a De Facto Director; provided that such **Claim** is also made and continuously maintained by at least one **Insured**, exclusive of any **De Facto Director**; provided further that any **De Facto Director** must be represented by the same counsel as the **Insured** against whom such **Claim** is also made and continuously maintained.

Enforcement Unit means any federal, state, local or provincial law enforcement or governmental regulatory authority worldwide.

Shadow Director means a natural person meeting the definition of shadow director in Section 251 of the United Kingdom Companies Act 2006 or in similar legal provisions in any other jurisdiction.

Shadow Director Claim means any **Claim** first made against a Shadow Director during the **Policy Period** or any applicable Extended Reporting Period for **Wrongful Acts** by an **Insured**, other than a **Shadow Director**; provided that such **Claim** is also made and continuously maintained by at least one **Insured**, exclusive of any Shadow Director; provided further that any **Shadow Director** must be represented by the same counsel as the **Insured** against whom such **Claim** is also made and continuously maintained.

Special Event means any one of the following events first occurring during the **Policy Period** which results in **Adverse Publicity**:

(A) the death, incapacity, resignation or federal or state criminal indictment of any **Executive** for whom the **Organization** has purchased and continues to maintain key individual life insurance;

(B) the **Organization's** intention to file or its actual filing for bankruptcy protection or a third party's intention to file or its actual filing for bankruptcy protection on behalf of the **Organization**, whether voluntary or involuntary;

(C) the threatened or actual commencement by a third party of an action, audit or investigation alleging an employment-related **Wrongful Act** by the **Organization**;

(D) the commencement or threat of litigation or other proceedings by any governmental or regulatory agency against the **Organization**;

(E) an accusation that any **Executive** has intentionally caused bodily injury to, or the death of, or has sexually abused any person in the performance of his or her duties with the **Organization**;

(F) an **Executive** was the victim of a violent crime while on the premises of the **Organization**;

(G) a child was abducted or kidnapped while under the care or supervision of the **Organization**; or

(F) any other material event if such event is specifically added by written endorsement attached to this Coverage Part.

Special Event Management Expenses means the following expenses, incurred with the Company's prior written consent:

(A) reasonable and necessary expenses incurred by a public relations firm or crisis management firm retained on behalf of **Organization** to make a public communication or prevent or minimize business disruption with respect to a **Special Event**;

(B) reasonable and necessary expenses incurred by the **Organization** for publication and circulation of materials in connection with a **Special Event**;

(C) reasonable and necessary travel expenses incurred by directors, officers and employees of the **Organization** in connection with a **Special Event**; or

(D) other reasonable and necessary expenses incurred by the **Organization**, subject to the Company's prior written approval. .

Private UK Company is a **Subsidiary** of the **Parent Organization**, where such **Subsidiary** (A) is organized under the laws of the United Kingdom, and (B) is comprised of securities that have not been the subject of a public offering, solicitation, sale, distribution or issuance, and are not publicly traded.

(5) **AMEND EXCLUSIONS**

Section V, Exclusions is amended as follows:

(A) Exclusion (A)(1), Prior Notice, is deleted and replaced with the following:

(1) Prior Notice

based upon, arising from or in consequence of any fact, circumstance, situation, transaction, event or **Wrongful Act** that, before the inception date set forth in item 2(A), Policy Period, of the GTC Declarations, was the subject of any notice accepted under any directors and officers and entity liability policy or coverage part or any other liability policy or coverage part that includes coverage for directors and officers and entity liability of which this Coverage Part is a direct or indirect renewal or replacement;

(B) Exclusion (A)(3), Bodily Injury/Property Damage, is deleted and replaced with the following:

(3) Bodily Injury/Property Damage

for bodily injury, mental anguish, humiliation, emotional distress, sickness, disease or death of any person or damage to or destruction of any tangible property including loss of use thereof whether or not it is damaged or destroyed, provided that this Exclusion (A)(3) shall not apply to:

(a) **Loss** for any mental anguish, humiliation or emotional distress asserted in an employment-related **Claim** afforded coverage under Insuring Clauses (A), Individual Non-Indemnified Liability Coverage, or (B), Individual Indemnified Liability Coverage;

(b) **Defense Costs** on account of a criminal proceeding for manslaughter (or any other similar offense);

(c) **Corporate Homicide Investigation Costs**; or

(d) **Loss** on account of any securities **Claim**, securityholder derivative demand or securityholder derivative action;

(6) **AMEND REPORTING**

Subsection (B) of Section VI, Reporting, is amended to add the following:

A **Special Event** shall be deemed to have first commenced on the inception date of the **Special Event**, provided that such **Special Event** is reported to the Company as soon as practicable, but in no event later than thirty (30) days after such **Special Event**, and shall conclude ninety (90) days after the inception date of such **Special Event**.

If during the **Policy Period**, an **Insured** becomes aware of a **Special Event**, and gives written notice thereof to the Company, then any **Claim** subsequently arising from such **Special Event** shall be deemed to have been first made against the **Insured** during the **Policy Year** in which such **Special Event** was first reported to the Company, provided any such subsequent **Claim** is reported to the Company as soon as practicable, but in no event later than ninety (90) days after the chief executive officer, chief financial officer, in-house general counsel or any person with the responsibility for the management of insurance claims (or any equivalent position to any of the foregoing) of an **Organization** becomes aware of such **Claim**.

(7) **AMEND RETENTION AND PRESUMPTIVE INDEMNIFICATION**

Section VII, Retentions and Presumptive Indemnification is amended as follows:

(A) Subsection (E) is amended to add the following:

Furthermore if an **Organization** refuses in writing, or fails within 60 days of an **Insured Person's** written request for indemnification, to advance, pay or indemnify an **Insured Person** for **Loss** on account of a **Claim**, then upon the reporting of the **Claim** pursuant to Section VI, Reporting, the Company shall advance covered **Defense Costs** until such time that the **Organization** accepts the **Insured Person's** request for indemnification or the applicable Limit of Liability set forth in Item 2 of the D&O Declarations has been exhausted, whichever occurs first.

(B) Section VII is amended to add the following:

For purposes of determining an **Organization's** indemnification obligation to any **De Facto Director**, **Shadow Director** or **Contractual Independent Contractor**, each **De Facto Director**, **Shadow Director** or **Contractual Independent Contractor** shall be deemed a director or officer of such **Organization**. Accordingly, the **Organization** shall be deemed to have granted such indemnification to each **De Facto Director**, **Shadow Director** or **Contractual Independent Contractor** to the fullest extent permitted by statutory or common law to the same extent as any director or officer of the **Organization**.

(8) **AMEND OTHER INSURANCE**

Solely with respect to the coverage afforded under this endorsement for any **Contractual Independent Contractor**, Section XI is amended to add the following:

Subject to the provisions of this Endorsement, no coverage shall be available for any **Loss** until after any or all coverage available under any policy providing professional liability or errors and omissions coverage has been exhausted.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

FIDUCIARY ENHANCEMENT ENDORSEMENT

In consideration of the premium charged, it is agreed that the Fiduciary Liability Coverage Part is amended as follows:

(1) **AMEND DEFINITIONS**

Section II, Definitions, is amended as follows:

(A) The definition of **Application** is deleted and all references to the term "**Application**" wherever found in this Coverage Part and any endorsements attached hereto, are replaced by the term "application".

(B) Subsection (A) of the definition of **Executive** is deleted and replaced with the following:

(A) a duly elected or appointed director, officer, partner, member of the Advisory Board or in-house general counsel or management committee members of any **Organization** incorporated in the United States of America;

(C) The definition of **Wrongful Act** is amended to add the following:

Wrongful Act also means any **Health Care Exchange Wrongful Act**;

(D) The following definitions are added as follows:

Health Care Exchange Wrongful Act means any actual or alleged breach of fiduciary duty by an **Insured**, or any actual or alleged act, error or omission by an **Insured**, in connection with the insurance purchased through, or attempted to be purchased through, a **Health Care Exchange**.

Health Care Exchange means the American Health Benefit Exchange, the SHOP Exchange, as such terms are defined in Section 1311 of the Patient Protection and Affordable Care Act, and any other exchange, including any public or private entity established to facilitate the purchase of health insurance coverage in accordance with the Patient Protection and Affordable Care Act, as amended.

Managed Care Services means the administration or management of a health care plan utilizing cost control mechanisms, including but not limited to utilization review, case management, disease management or the use of a preferred provider network; provided, however, that **Managed Care**

Services does not include (A) any services provided by a **Self-Administered Plan**, or (B) any acts, errors or omissions in the rendering of or failure to render **Medical Services** by an **Insured**.

Medical Services means health care, medical care or treatment provided to any person, including medical, surgical, dental, psychiatric, mental health, chiropractic, osteopathic, nursing or other professional health care; the use, prescription, furnishing or dispensing of medications, drugs, blood, blood products or medical, surgical, dental or psychiatric supplies, equipment or appliances in connection with such care; the furnishing of food or beverages in connection with such care; the providing of counseling or other social services in connection with such care; the performance of post-mortem examinations and the handling of human bodies; provided, however, that **Medical Services** shall not include utilization review.

Self-Administered Plan means a **Plan** administered by an Insured and in which the employer or plan sponsor (as defined in the Employee Retirement Income Security Act of 1974) retains the right to make the final benefit determination.

(2) **AMEND EXCLUSIONS**

Exclusion III(C), Bodily Injury/Property Damage, is deleted and replaced with the following:

(C) <u>Bodily Injury/Property Damage</u>
for bodily injury, mental anguish, humiliation, emotional distress, sickness, disease or death of any person or damage to or destruction of any tangible property including loss of use thereof whether or not it is damaged or destroyed; provided that this Exclusion (C) shall not apply to any actual or alleged bodily injury, mental anguish, emotional distress, sickness, disease, exacerbation of existing illness or wrongful death of any person resulting from (a) selection of any **Managed Care Services** provider, or (b) denial or delay of any benefit under a health care plan, other than a **Self-Administered Plan**, in an aggregate amount not to exceed $<SUBLIMIT> per **Policy Period**, which amount shall be part of, and not in addition to, the Company's Maximum Aggregate Limit of Liability set forth in Item 2 of the FL Declarations.

(3) **AMEND DEFENSE AND SETTLEMENT**

Section VIII, Defense and Settlement, is amended to add the following:

If the Company recommends a settlement within the applicable Limit of Liability set forth in Item 2 of the FL Declarations which is agreed to by the claimant (“Settlement Opportunity”), and

(1) the **Insureds** consent to such settlement within thirty (30) days of the date the **Insureds** are first made aware of the Settlement Opportunity;

(2) such consent occurs within the first ninety (90) days after the **Claim** is first reported to the Company; and

(3) such **Claim** is reported to the Company within the first thirty (30) days after it is made,

then, in the event the **Claim** settles as a result of such Settlement Opportunity, the Retention applicable to such **Claim** shall be waived, and any amounts paid by the **Insureds** toward the Retention shall be reimbursed by the Company.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

PRIVATE COMPANY CRIME ENHANCEMENT ENDORSEMENT

In consideration of the premium charged, it is agreed that this Coverage Part is amended as follows:

(1) **AMEND INSURING CLAUSES**

The following Insuring Clause is added as follows:

Telephone Fraud Coverage

The Company shall pay the **Parent Organization** for **Telephone Fraud Financial Loss** sustained by an **Insured** resulting from **Remote Access Fraud**.

(2) **AMEND DECLARATIONS**

Item 2 of the Crime Declarations is amended to add the following:

Insuring Clauses Applicable to this Coverage Part:	Limits of Liability:	Retentions:
Telephone Fraud Coverage:	<LIMIT>	<DEDAMT>

(3) **AMEND DEFINITIONS**

Section II, Definitions, is amended as follows:

(A) The definition of **Computer System** is deleted and replaced with the following:

Computer System means a computer and all input, output, processing, storage, off-line media library and communication facilities which are connected to such computer, provided that such computer and facilities are:

(a) owned and operated by an **Organization**;

(b) leased and operated by an **Organization**; or

(c) utilized by an **Organization**.

(B) The definition of **Credit Card Fraud** is deleted and replaced with the following:

Credit Card Fraud means the **Forgery** or alteration of, on or in, any written instrument required in connection with any credit card, charge card or debit card issued to an **Organization** or at the request of an **Organization**, to any partner, officer or **Employee** of an **Organization**.

(C) The definition of **Insured** is amended to add the following:

The definition of **Insured** is amended to include a joint venture in which the **Parent Organization** or **Subsidiary** has an equity interest, and pursuant to a written contract with the owners of the remaining and outstanding voting stock of such joint venture, solely controls the management and operations of such joint venture, provided that any coverage available to such joint venture shall only apply pro rata based on the proportion of the **Parent Organization's** or **Subsidiary's** equity interest in such joint venture.

(D) The second paragraph of the definition of **In Transit** is deleted and replaced with the following:

provided that such conveyance begins immediately upon receipt of **Money**, **Securities** or **Property** by the person(s) described in Subsections (A) or (B) above, from any:

i. **Organization**, and ceases immediately upon delivery to the designated recipient or its agent; or

ii. **Client**, and ceases immediately upon delivery to the **Organization** or **Banking Premises**.

(E) The definition of **Money** is amended to add the following:

Money also means bitcoin.

(F) The following definitions are added as follows:

Calling Card means a calling card access number or telephone credit card access number issued by a telecommunications company which gives the **Calling Card** customer access to and use of telecommunications services.

Final Payment means the amount paid after the tax adjustment described in the Tax Compensation Coverage section in this endorsement.

Loss payment means the amount to be paid prior to the tax adjustment described in the Tax Compensation Coverage section this endorsement.

Marginal Foreign Tax Rate means the marginal rate of income taxation of the insured entity which sustained the loss for the tax year in which such loss is written off.

Marginal United States and State Tax Rates means the marginal rates of Federal and State income taxation of the **Insured** which pays the loss in the United States for the tax year in which such loss is written off and shall include, if any, foreign tax credits accruing as a result of such loss.

Remote Access Fraud means the fraudulent infiltration and manipulation of the **Insured's Telephone System** from a remote location to gain access to outbound long distance telephone service.

Telephone Fraud Financial Loss means toll and line charges the **Insured** is responsible for solely as a result of **Remote Access Fraud**.

Telephone System means PBX, CBX, Merlin, remote access (including DISA), and all related peripheral equipment or similar systems owned or leased by the **Insured** for purposes of voice based telecommunications.

(4) **AMEND EXCLUSIONS**

Section III, Exclusions, is amended as follows:

(A) Exclusion (A)(3), Partner, is deleted.

(B) Paragraph (b) of Exclusion (A)(7), Indirect/Consequential, is deleted and replaced with the following:

(b) the cost of reproducing information contained in any lost or damaged manuscripts, records, accounts, microfilms, tapes, or other records resulting directly from a covered loss.

(C) Exclusion (C), Loss Sustained Option, is deleted and replaced with the following:

(C) Loss Sustained Option
In addition to the Exclusions in Subsections (A) and (B) above, and if the Loss Sustained option is purchased, as set forth in Item 3 of the Crime Declarations, no coverage will be available for:

(1) loss unless sustained by any **Insured** prior to the termination of this Coverage Part as to such **Insured** and **Discovered** and written notice thereof is given to the Company within one hundred twenty (120) days following such termination;

(2) loss unless sustained prior to the termination of any Insuring Clause or any particular coverage offered under any Insuring Clause and **Discovered** and written notice thereof is given to the Company within one hundred twenty (120) days following such termination; or

(3) loss unless sustained prior to the termination of this Coverage Part in its entirety, and **Discovered** and written notice thereof is given to the Company:

(a) within one hundred twenty (120) days following such termination, if this Coverage Part is not renewed with the Company;

(b) prior to such termination, if this Coverage Part is renewed with the Company; or

(c) within one (1) year following such termination, if the termination results from the voluntary liquidation or voluntary dissolution of the **Parent Organization**.

(D) Exclusion (D), Loss Discovered Option, is deleted and replaced with the following:

(D) Loss Discovered Option

In addition to the Exclusions in Subsections (A) and (B) above and if the Loss Discovered option is purchased as set forth in Item 3 of the Crime Declarations, no coverage will be available for:

(1) loss unless sustained by any **Insured** prior to the termination of this Coverage Part as to such **Insured**, and **Discovered** and written notice thereof is given to the Company within one hundred twenty (120) days following such termination of this Coverage Section as to such **Insured**;

(2) loss unless sustained prior to the termination of any Insuring Clause or any particular coverage offered under any Insuring Clause, and **Discovered** and written notice thereof is given to the Company within one hundred twenty (120) days following such termination of any Insuring Clause or any particular coverage offered under any Insuring Clause;

(3) loss unless sustained prior to the termination of this Coverage Part in its entirety, and **Discovered** and written notice thereof is given to the Company within one hundred twenty (120) days following such termination of this Coverage Part in its entirety; or

(4) loss unless sustained prior to the termination of this Coverage Part and **Discovered** and written notice thereof is given to the Company, within one (1) year following such termination if the termination results from the voluntary liquidation or voluntary dissolution of the **Parent Organization.**

However, the foregoing extended period to discover loss terminates immediately upon the effective date of any other insurance obtained by the **Insured** to replace, in whole or in part, the insurance afforded by this Coverage Part, whether or not such other insurance provides coverage for loss sustained prior to its effective date.

(E) The following exclusions are added as follows:

No coverage will be available under Insuring Clause, Telephone Fraud Coverage, for:

(A) loss or damage of **Money**, **Securities** or **Property** as a result of an extortion payment surrendered to any person as a result of a threat to do damage to the **Premises** or **Telephone System**; or

(B) loss caused by any use of a **Calling Card**.

(5) **AMEND PROOF OF LOSS AND LEGAL PROCEEDINGS**

Section VI, Proof of Loss and Legal Proceedings, is amended as follows:

(A) Subsections (A) and (B) are deleted and replaced with the following:

(A) Knowledge possessed by any **Executive** or **Insurance Representative** or **Discovery** shall be deemed knowledge possessed by or **Discovery** by all **Insureds.**

(B) It is a condition precedent to coverage hereunder that, upon **Discovery**, the **Parent Organization** will:

(1) (a) give written notice and furnish affirmative proof of loss with full particulars to the Company at the earliest practicable moment, and in no event later than one (1) year after such **Discovery** if this Coverage Part expires and is renewed with the Company; or

(b) give written notice to the Company at the earliest practicable moment and in no event later than sixty (60) days after such **Discovery** and furnish affirmative proof of loss with full particulars to the Company at the earliest practicable moment, and in no event later than 180 days after such **Discovery** if this Coverage Part expires (or is otherwise terminated) and is not renewed with the Company;

(2) submit to examination under oath at the Company's request;

(3) produce all pertinent records at such reasonable times and places as the Company shall designate; and

(4) provide full cooperation with the Company in all matters pertaining to a loss or claim.

(B) Solely with respect to the Telephone Fraud Coverage Insuring Clause, Section VI, Proof of Loss and Legal Proceedings, is amended to add the following:

With respect to Telephone Fraud Coverage Insuring Clause, it is a condition precedent to coverage hereunder that upon **Discovery**, the **Parent Organization** will give written notice to the Company at the earliest practicable moment, and in no event later than sixty (60) days after the billing cut-off date shown in the first telephone service charge bill from the telephone carrier in which **Remote Access Fraud** is documented. However, coverage shall not apply to that portion of loss sustained beginning thirty (30) days from the billing cut-off date shown in the first telephone service charge bill from the telephone carrier in which **Remote Access Fraud** is documented. Upon actual knowledge of **Remote Access Fraud** the **Insured** shall take all reasonable steps to curtail the unauthorized use of any **Telephone System** and otherwise mitigate the loss by notifying any installer of any **Telephone System** and the affected telephone carriers.

Within four (4) months after such **Discovery** the **Parent Organization** shall furnish to the Company affirmative proof of loss with full particulars. Legal proceedings for recovery of any loss hereunder shall not be brought after the expiration of two years from the discovery of such loss.

At the Company's request, the **Insured** shall submit to examination by the Company, subscribe the same under oath if required, and produce for the Company's examination all pertinent records at such reasonable times and places as the Company shall designate, and shall cooperate with the Company in all matters pertaining to any loss or claim.

(6) **ADD TAX COMPENSATION COVERAGE**

The following Section is added as follows:

Tax Compensation Coverage

The Company shall adjust the amount of any loss paid in the United States to compensate for additional federal or state tax liability incurred by the **Insured** as a result of the payment of such loss in the United States rather than in the country in which such loss was sustained, provided that:

(A) The loss was sustained by an entity not subject to United States or state tax provisions; and

(B) The payment for such loss is reportable income under the Internal Revenue Code and regulations or the tax laws of any state or commonwealth of the United States.

Loss payment shall be adjusted using the following formula:

Final payment =

$$\textbf{Loss Payment times} \quad \frac{\textbf{One minus the Marginal Foreign Tax Rate}}{\textbf{One minus the Sum of the Marginal United States and State Tax Rates}}$$

Notwithstanding the foregoing:

(1) Nothing in this Section shall be construed to: (i) increase the Company's liability above the amount set forth in the Limits of Liability; or (ii) decrease the Company's liability below the original amount of loss payment.

(2) The **Insured** shall cooperate with any attempt by the Company to pay the loss directly to the entity sustaining the loss.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

EPL ENHANCEMENT ENDORSEMENT

In consideration of the premium charged, it is agreed that this Coverage Part is amended as follows:

(1) The following Section is added as follows:

Crisis Management Expenses Coverage

The Company shall reimburse the **Parent Organization** for **Crisis Management Expenses** incurred by an **Organization**, provided that the Company's maximum aggregate liability for all **Crisis Management Expenses** shall not exceed $10,000, which amount is part of, and not in addition to, the Company's Maximum Aggregate Limit of Liability as set forth in Item 2 of the EPL Declarations and no Retention shall apply to such amount.

(2) The definition of **Application**, as set forth in Section II, Definitions, is deleted.

(3) The definition of **Benefits**, as set forth in Section II, Definitions, is deleted and replaced with the following:

Benefits means perquisites, fringe benefits, deferred compensation or payments (including insurance premiums) in connection with an employee benefit plan and any other benefit to an employee arising out of the employment relationship. **Benefits** shall not include salary, wages, commissions, bonuses, **Stock Benefits** or non-deferred cash incentive compensation.

(4) The definition of **Employment Claim**, as set forth in Section II, Definitions, is amended as follows:

(a) Subparagraph (c) of Subsection (A)(1) is deleted and replaced with the following:

(c) criminal proceeding commenced by a return of an indictment, information or similar document;

(b) The qualifying language set forth after paragraph (2) of Subsection (A) is deleted and replaced with the following:

which is brought by or on behalf of a past, present or prospective **Employee** or **Independent Contractor** of an **Organization** against any **Insured** for an **Employment Practices Wrongful Act** including any **Employment Practices Wrongful Act** that occurs via social media or social networking (, including any appeal therefrom; or

(c) Subsection (B) is deleted and replaced with the following:

(B) a written request first received by an **Insured** to toll or waive a statute of limitations or other potential defense based on timeliness relating to a potential **Employment Claim** as described in Subsection (A) above.

(5) The definition of **Employment Discrimination**, as set forth in Section II, Definitions, is amended to include any violation of employment discrimination laws including any actual, alleged limitation, segregation or classification of any employee or applicant for employment in any way that would deprive or tend to deprive any person of employment opportunities or otherwise affect his or her status as an employee based on such person's political affiliation or transgender status.

(6) The definition of **Employment Harassment**, as set forth in Section II, Definitions, is deleted and replaced with the following:

Employment Harassment means:

(A) sexual harassment, including unwelcome sexual advances, requests for sexual favors, or other conduct of a sexual nature that is made a condition of employment with, used as a basis for employment decisions by, interferes with performance or creates an intimidating, hostile or offensive working environment within an **Organization**, even if not perpetrated by an **Employee**, **Executive**, or **Independent Contractor**; or

(B) workplace harassment, including work related harassment or bullying of a non-sexual nature that interferes with performance or creates an intimidating, hostile or offensive working environment within an **Organization**, even if not perpetrated by an **Employee**, **Executive**, or **Independent Contractor**.

(7) Subsection (A) of the definition of **Executive**, as set forth in Section II, Definitions, is deleted and replaced with the following:

(A) a duly elected or appointed director, officer, in-house general counsel, trustee, trustee emeritus, governor, executive director, or management committee members of any **Organization** incorporated in the United States of America;

(8) The definition of **Loss**, as set forth in Section II, Definitions, is amended as follows:

(a) Subsection (C) is deleted and replaced with the following:

(C) back pay, front pay, claimant's attorney's fees awarded by a court against an **Insured** or agreed to by the Company in connection with a settlement (but only if such claimant's attorney's fees are agreed to in writing by the Company);

(b) Subsection (6) is deleted and replaced with the following:

(6) (i) **Benefits** due or to become due or the equivalent value of such **Benefits**, except with respect to any **Employment Claim** for **Wrongful Termination**, or

(ii) **Stock Benefits**;

(c) The following is added:

Solely with respect to a **Mass or Class Action**, **Loss** shall also include the reasonable and necessary external costs of training, education, sensitivity or minority development or diversity programs required under the terms of a settlement, judgment or consent decree; provided that the Company's maximum aggregate liability for all such **Loss** on account of all **Mass or Class Actions** shall be the lesser of either twenty-five percent (25%) of the Maximum Aggregate Limit of Liability set forth in Item 2 of the EPL Declarations or one million dollars ($1,000,000) and such amount is part of, and not in addition to, the Company's Maximum Aggregate Limit of Liability set forth in Item 2 of the EPL Declarations.

(9) The lead-in wording of the definition of **Retaliation**, as set forth in Subsection II, Definitions, is deleted and replaced with the following:

> **Retaliation** means retaliatory treatment against any **Employee** or **Independent Contractor** of an **Organization** on account of such individual or another **Employee**:

(10) The definition of **Third Party**, as set forth in Section II, Definitions, is deleted and replaced with the following:

Third Party means any natural person who is a customer, student, patient, member, vendor, service provider or other business invitee of an **Organization**, or any other natural person or group of natural persons; provided **Third Party** shall not include any past, present or prospective employee or independent contractor.

(11) Subsection (E) of the definition of **Third Party Claim**, as set forth in Section II, Definitions, is deleted and replaced with the following:

(E) a written request first received by an **Insured** to toll or waive a statute of limitations or other potential defense based on timeliness relating to a potential **Third Party Claim** as described in Subsections (A) through (D) above.

(12) The qualifying language set forth after Subsection (D) of the definition of **Third Party Claim**, as set forth in Section II, Definitions, is deleted and replaced with the following:

> which is brought by or on behalf of a **Third Party** against an **Insured** for a **Third Party Wrongful Act**, including any appeal therefrom; or

(13) The definition of **Third Party Wrongful Act**, as set forth in Section II, Definitions, is amended to include any actual or alleged false imprisonment, but only when alleged as part of a **Third Party Claim** for any act set forth in Subsections (A) or (B) of the definition of **Third Party Wrongful Act**, committed, attempted, or allegedly committed or attempted by any **Organization** or by any **Insured Person** while acting in his or her capacity as such.

(14) The definition of **Workplace Tort**, as set forth in Section II, Definitions, is amended as follows:

(a) Paragraph (1) of Subsection (A) is deleted and replaced with the following:

(1) misrepresentation (including the inducement to become or remain as an employee based upon an erroneous job description or misrepresentation regarding advancement opportunity),

(b) Subsection (B) is amended to add the following paragraph (8) after paragraph (7):

(8) malicious prosecution,

(15) Section II, Definitions, is amended to add the following:

Crisis Management Event means an allegation of: (i) an **Employment Practices Wrongful Act** where the **Organization's** director of Human Resources, in-house general counsel, or equivalent position of the foregoing, reasonably believes that such **Employment Practices Wrongful Act** will result in a **Mass or Class Action**; or (ii) **Employment Harassment** by a **Senior Executive**, where the **Organization's** director of Human Resources, in-house general counsel, or equivalent position of the foregoing, reasonably believes that such **Employment Harassment** will result in a **Claim**.

Crisis Management Expenses means the reasonable and necessary cost of retaining, for a stipulated period of time with the prior approval of the Company, an independent public relations consultant, media management consultant, investigative firm or law firm, and the cost of advertising and public relations media and activities in connection with a **Crisis Management Event**.

Mass or Class Action means any **Claim** brought or maintained:

(a) by or on behalf of five or more natural persons who are acting in concert, whether or not such natural persons are represented by one or more legal counsel;

(b) by or on behalf of one to four natural persons if any of such natural persons are making a pattern and practice or systemic discrimination allegation and are seeking monetary relief on behalf of a class or group of complainants in order to resolve such **Claim**, whether or not such natural persons are represented by one or more legal counsel; or

(c) by a governmental entity, department or agency making a pattern and practice or systemic discrimination allegation or seeking monetary relief on behalf of a class or group of complainants in order to resolve such **Claim**.

Other Policy means any employment practices liability policy or coverage part or any other liability policy or coverage part that includes coverage for employment practices liability, issued to any entity other than the **Organization**, but which has afforded coverage to the **Organization** as either an insured, additional insured or co-defendant insured.

Senior Executive means a director or corporate officer of the **Organization**.

(16) Exclusion (A), Prior Notice, of Section III, Exclusions, is deleted and replaced with the following:

(A) Prior Notice

based upon, arising from or in consequence of any fact, circumstance, situation, transaction, event or **Wrongful Act** that, before the inception date set forth in Item 2 (A), Policy Period, of the GTC Declarations, was the subject of any written notice accepted under any employment practices liability policy or coverage part or any other liability policy or coverage part that includes coverage for employment practices liability of which this Coverage Part is a direct or indirect renewal or replacement;

(17) Exclusion (C), Pollution, of Section III, Exclusions, is deleted and replaced with the following:

(C) Pollution
for any:

(1) discharge, emission, release, dispersal or escape of any **Pollutants** or any threat thereof;

(2) treatment, removal or disposal of any **Pollutants**; or

(3) regulation, order, direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize any **Pollutants**;

including any **Claim** for financial loss to an **Organization**, itssecurity holders or its creditors based upon, arising from, or in consequence of any matter described in Paragraphs (1), (2) or (3) of this Exclusion (C), provided that this Exclusion (C) shall not apply to **Loss** on account of any **Employment Claim** for **Retaliation**;

(18) With respect to Section III, Exclusions, no fact pertaining to or knowledge possessed by any **Insured** shall be imputed to any other **Insured** to determine if coverage is available.

(19) Subsections (A) and (C) of Section IV, Reporting, are deleted and replaced with the following:

(A) An **Insured** shall, as a condition precedent to exercising any right to coverage under this Coverage Part, give to the Company written notice of any **Claim** as soon as practicable after any person with the responsibility for the management of insurance claims (or any equivalent position thereof), or any member of the in-house general counsel or human resources departments, of an **Organization** becomes aware of such **Claim**, but in no event later than:

(1) if this Coverage Part expires (or is otherwise terminated) without being renewed with the Company, ninety (90) days after the effective date of such expiration or termination; or

(2) the expiration date of the Extended Reporting Period, if applicable,

provided that if the Company sends written notice to the **Parent Organization** stating that this Coverage Part is being terminated for nonpayment of premium, an **Insured** shall give to the Company written notice of such **Claim** prior to the effective date of such termination.

(C) If during the **Policy Period**, or any applicable Extended Reporting Period, an **Insured** becomes aware of a **Potential Claim** and gives written notice of such **Potential Claim** to the Company, and requests coverage under this Coverage Part for any **Claim** subsequently resulting from such **Potential Claim**, then any **Claim** subsequently arising from the **Potential Claim** shall be deemed made against the **Insured** during the **Policy Year** in which written notice of such **Potential Claim** was first given to the Company, provided any such subsequent **Claim** is reported to the Company as soon as practicable, but in no event later than ninety (90) days after any position responsible for the management of insurance claims (or any equivalent position thereof), or any member of the in-house general counsel or human resources departments of an **Organization** becomes aware of such **Claim**.

Any **Insured** shall, as a condition precedent to exercising their rights under the CrisisManagement Expenses Coverage, give to the Company written notice as soon as practicable of the **Crisis Management Event**, but in no event later than thirty (30) days after the commencement of such **Crisis Management Event.** If during the **Policy Period**, an **Insured** becomes aware of a **Crisis Management Event**, and gives written notice thereof to the Company, then any **Claim** subsequently arising from such **Crisis Management Event** be deemed to have been first made during the **Policy Year** in which such **Crisis Management Event** was first reported to the Company; provided any such subsequent **Claim** is reported to the Company as soon as practicable, but in no event later than ninety (90) days after the chief executive officer, chief financial officer, any position responsible for the management of insurance claims (or any position equivalent to any of the foregoing), or any member of the in-house general counsel or human resources department of an **Organization** becomes aware of such **Claim.**

(20) Section V, Retention, of this Coverage Part is amended to include the following:

Notwithstanding the foregoing Subsections (A), (B) and (C), if any payment is made under the **Other Policy** on account of any **Claim** which is also covered under this Coverage Part, the Retention set forth in item 4 of the EPL Declarations applicable to such **Claim** shall be reduced, up to the amount of such Retention, by the sum of:

(a) the deductible or retention amount applied to such **Claim** and paid by the **Insured** under the **Other Policy**; and

(b) the amount of loss actually paid by the carrier of such **Other Policy** on account of such **Claim.**

(21) Section VI, Defense and Settlement, is amended to add the following:

If the Company recommends a settlement within the applicable Limit of Liability set forth in Item 3 of the EPL Declarations which is agreed to by the claimant, and

(i) the **Insureds** consent to such settlement offer within thirty (30) days of such offer being made by the Company;

(ii) the **Insureds** consent to such settlement offer occurs within ninety (90) days of the **Claim** being reporting to the Company; and

(iii) such **Claim** is reported to the Company within the first thirty (30) days after it is made,

then, in the event the **Claim** settles as a result of such offer, any applicable Retention set forth in Item 4 of the EPL Declarations which is $25,000 or lower shall be reduced by fifty percent (50%).

(22) Section VIII, Employment Claim Arbitration, of this Coverage Part is deleted.

(23) Section IX, Other Insurance, of this Coverage Part is deleted and replaced with the following:

IX. OTHER INSURANCE

With respect to any **Claim** covered under both this Coverage Part and under the **Other Policy**, the coverage afforded under this Coverage Part shall be specifically excess of and will not contribute with the **Other Policy**. With respect to any other:

(A) **Employment Claims**, coverage under this Coverage Part shall be primary, provided that with respect to that portion of an **Employment Claim** made against any leased or temporary employee or **Independent Contractor**, **Loss**, including **Defense Costs**, payable on behalf of such leased or temporary employee or **Independent Contractor** under this Coverage Part shall be excess of and shall not contribute with any other valid and collectible insurance policy (other than a policy that is issued specifically as excess of the insurance afforded by the Coverage Part), regardless of whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise.

(B) **Third Party Claim**, coverage under this Coverage Part shall be excess of and shall not contribute with any other valid and collectible insurance policy (other than a policy that is issued specifically as excess of the insurance afforded by the Coverage Part), regardless of whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise.

(24) Subsections (A), (B), and (C) of Section X, Representations And Severability, are deleted and replaced with the following:

(A) In granting coverage to the **Insureds** under this Coverage Part, the Company has relied upon the declarations and statements in the written application for this Coverage Part ("Application"). Such declarations and statements are the basis of the coverage under this Coverage Part and shall be considered as incorporated in and constituting part of this Coverage Part.

(B) The Application for coverage shall be construed as a separate Application for coverage by each **Insured Person**. With respect to the declarations and statements in such Application, no knowledge possessed by an **Insured Person** shall be imputed to any other **Insured Person**.

(C) However, in the event that such Application contains any misrepresentations made with the actual intent to deceive or contains misrepresentations which materially affect either the acceptance of the risk or the hazard assumed by the Company under this Coverage Part, then no coverage shall be afforded for any **Claim** based upon, arising from or in consequence of any such misrepresentations with respect to:

(1) any **Executive** who knew of such misrepresentations or any **Organization** to the extent it indemnifies any such **Insured Person**; or

(2) any **Organization** if any past or present director of human resources, president, in-house general counsel (or any equivalent position to any of the foregoing) of the **Parent Organization** knew of such misrepresentations.

(25) The following Section is added as follows:

PRIORITY OF PAYMENTS

(A) In the event of **Loss** arising from a **Claim** for which payment is concurrently due under this Coverage Part, the Company shall:

(1) first, pay **Loss** incurred by an **Insured Person** if such **Loss** cannot be indemnified by an **Organization**, because such **Organization** is not permitted by common or statutory law to indemnify, or is permitted or required to indemnify, but is unable to do so by reason of **Financial Impairment**, then

(2) with respect to whatever remaining amount of the Limit of Liability is available after payment under Subsection (A) above, pay any other **Loss** concurrently due under this Coverage Part.

(B) Except as otherwise provided in Subsection (A) above, the Company may pay covered **Loss** as it becomes due under this Coverage Part without regard to the potential for other future payment obligations under this Coverage Part.

(C) Subject to the foregoing, the Company shall, upon receipt of a written request from the chief executive officer of the **Parent Organization**, delay any payment of **Loss** otherwise due to or on behalf of the **Organization** until such time as the chief executive officer of the **Parent Organization** designates; provided the liability of the Company with respect to any such delayed **Loss** payment shall not be increased, and shall not include any interest, on account of such delay.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

Notice of Loss Control Services

Insuring Company: <CARRNAME>

As a Chubb policyholder, you have loss prevention information and/or services available to you, as listed in this Notice. You may order any brochure by email to formsordering@chubb.com and to view our full suite of loss prevention brochures/services go to www.chubb.com/us/fl-lossprevention

DIRECTORS AND OFFICERS (D&O) LIABILITY LOSS PREVENTION SERVICES

- ### Directors and Officers Liability Loss Prevention *Manuals:*

  Directors and Officers Liability Loss Preventions – #14-01-0035
  Directors and Officers Securities Litigation Loss Preventions – #14-01-0448
  Director Liability Loss Prevention in Mergers and Acquisitions – #14-01-1099
  Directors and Officers Liability Loss Prevention for Not-for-Profit- -#14-01-0036
  Cyber Loss Mitigation for Directors -#14-01-1199

EMPLOYMENT PRACTICES LIABILITY (EPL) LOSS PREVENTION SERVICES

- ### Toll-free Hot Line

  Have a question on how to handle an employment situation? Simply call **1.888.249.8425** to access the nationally known employment law firm of Jackson Lewis P.C. We offer customers an unlimited number of calls to the hot line at no additional charge.

- **ChubbWorks.com**
  ChubbWorks.com is a web-based platform that offers multiple services including overviews of employment laws, sample employment policies and procedures, and on-line training. To gain immediate access to ChubbWorks go to **www.chubbworks.com** and register using your policy number.

- ### Employment Practices Loss Prevention Guidelines *Manual*

  Employment Practices Loss Prevention Guidelines - #14-01-0061

- ### Loss Prevention Consultant Services

  Chubb has developed a network of more than 120 law firms, human resources consulting firms, and labor economist/statistical firms that offer specialized services for employment issues.

- **Public Company EPL Customers**

  Employment Practices Loss Prevention Guidelines – Written by Seyfarth Shaw exclusively for Chubb this manual provides an overview of key employment issues faced by for-profit companies and offers proactive idea for avoiding employment lawsuits.

- **Private Company EPL Customers**
  Employment Practices Loss Prevention Guidelines – Written by Seyfarth Shaw exclusively for Chubb this manual provides an overview of key employment issues for –profit companies and offers proactive idea for avoiding employment lawsuits.

Fiduciary Liability Loss Prevention Services

- ***Fiduciary Liability Loss Prevention Manual***
  Who May Sue You and Why: How to Reduce Your ERISA Risks and the Role of Fiduciary Liability Insurance #14-01-1019

Crime Loss Prevention Services

- ***Crime/Kidnap, Ransom & Extortion Loss Prevention Manual***

  Preventing Fraud: How Anonymous Hotlines Can Help #14-01-1090

Cyber Security Loss Prevention Services

Visit: https://www2.chubb.com/us-en/business-insurance/cyber-security.aspx to learn more about Chubb's Cyber Services for our policyholders.

HEALTH CARE DIRECTORS AND OFFICERS (D&O) LIABILITY LOSS PREVENTION SERVICES

- **Readings in Health Care Governance Manual**
  Readings in Health Care Governance -#14-01-0788
- **ChubbWorks.com**
  ChubbWorks.com for Health Care Organizations – The Health Care Zone is a free online resource containing health care specific loss prevention information for employment practices liability, directors and officers (D&O) liability, and fiduciary liability exposures. To gain immediate access to ChubbWorks go to **www.chubbworks.com** and register using your policy number.
- Health Care D&O Loss Prevention Consultant Services
  Health Care D& O Loss Prevention Consultant Services- #14-01-1164

The services provided are advisory in nature. While this program is offered as a resource in developing or maintaining a loss prevention program, you should consult competent legal counsel to design and implement your own program. No liability is assumed by reason of the services, access or information provided. All services are subject to change without notice.

ENDORSEMENT

<COVSECT>

Effective date of
this endorsement: <TRXEFFDATE>

Company: <CARRNAME>

Endorsement No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

LOSS PREVENTION CONSULTANT SERVICES ENDORSEMENT

In order to assist the **Insured** in reducing its exposure to covered **Loss** under this Coverage Part, the Company has agreed to contribute to the cost of the qualified employment practices loss prevention consultant services reviewed and approved by the Company, including but not limited to the following:

(a) Legal compliance audits of human resources/employment policies and practices;

(b) Development or updating of human resources/employment policies and practices;

(c) Training program design and implementation on topics such as employment discrimination laws, equal employment opportunity obligations, maintaining hostile-free work environments, interviewing skills, managing diversity, and handling corrective action and discharge issues, all with a focus on loss prevention;

(d) Legal advice and counsel on employment issues; or

(e) Statistical analyses on workforce and employment practices to detect trends or patterns that could lead to regulatory problems, lawsuits or employee allegations;

provided, however, that such contribution shall take the form of a return premium of fifty percent (50%) of the cost of such qualified employment practices loss prevention consultant services, but such contribution shall also be subject to a maximum amount equal to ten percent (10%) of the annual premium charged for this coverage section.

All employment practices loss prevention consultant services shall be provided by a loss prevention services provider approved by the Company and such services must be rendered during the **Policy Period**.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement: <TRXEFFDATE>

Company: <CARRNAME>

Endorsement No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

PRINCIPAL SHAREHOLDERS EXCLUSION ENDORSEMENT

In consideration of the premium charged, it is agreed that the Company shall not be liable under this Coverage Part for **Loss** on account of any **Claim** brought or maintained by or on behalf of any individual or entity directly or beneficially owning <PERCENTWORDANDNUM> or more of the outstanding securities or voting rights of the **Organization**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

CHUBB®

Chubb Producer Compensation
Practices & Policies

Chubb believes that policyholders should have access to information about Chubb's practices and policies related to the payment of compensation to brokers and independent agents. You can obtain that information by accessing our website at http://www.chubbproducercompensation.com or by calling the following toll-free telephone number:

1-866-512-2862.

CHUBB®

IMPORTANT NOTICE TO POLICYHOLDERS

Social Engineering Tips
Please read!

HAVE YOU BEEN TRICKED INTO WIRE FRAUD? TAKE IMMEDIATE ACTION!

If you believe you have transferred funds to a criminal posing as a legitimate business associate, you should act quickly:

1. Immediately contact the originating bank and **request a recall of the wire transfer** and confirm that recall in writing.
2. Immediately file a **complaint with the FBI** at www.ic3.gov. This reporting triggers the FBI's Recovery Asset Team and the FBI's assistance seeking return of the wire transfer.
3. Preserve **records of the incident**, including emails sent and received *in their original electronic state*. Correspondence and forensic information contained in these electronic files help investigators shed light on the perpetrator(s), and parties responsible for the incident.
4. Once the above steps are complete, **contact Chubb** per the instructions in your policy.

While neither recalling the wire transfer nor reporting to the FBI guarantees the return of your funds, these steps maximize the opportunity to mitigate your loss, assist the FBI in tracing the funds and help establish any insurance claim.

Simple Steps to Prevent Fraudulently Induced Wire Transfers

Email communication is efficient, but it is not a secure method of communication. Regardless of your familiarity with a contact, that contact's **email may be intercepted, altered and fabricated**. You may reduce the chances of fraud by following these best practices:

1. **Verify Email Requests by Telephone**: Require those responsible for paying invoices or changing bank routing information to verify payment details over the phone, rather than by email or documents sent electronically. Making a phone call to a known, pre-existing telephone number remains the single best protection against fraud.
2. **Segregate Wire Transfer Responsibilities**: Establish a standing policy that requires at least three people to review and approve wire transfer requests, pay an invoice or change a business partner's bank account information. Such requests should be entered by the initiator of the wire and verified by two independent signatories.
3. **Turn on MFA for Cloud Email**: Multifactor Authentication is available from all major email providers. It provides a layer of security to email accounts beyond a user's account name and password, making it harder for criminals to impersonate you, your executives and your employees.

This document is for information only. It is offered as a resource to be used together with your professional insurance advisers in maintaining a loss prevention program. No liability is assumed by reason of the information this document contains.

IMPORTANT NOTICE TO POLICYHOLDERS

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

FRAUDULENT INSTRUCTIONS EXCLUSION

In consideration of the premium charged, it is agreed that:

No coverage will be available under Insuring Clauses (B), (C), (D), (E), and (F) for loss resulting from any transfer, payment or delivery of **Money**, **Securities**, or **Property** approved by an **Employee** or arising out of any misrepresentation received by any **Employee**, agent, independent contractor or other representative of the **Insured**, whether such transfer, payment or delivery was made in good faith or as a result of trick, artifice, fraud or false pretenses.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

U.S. Treasury Department's Office Of Foreign Assets Control ("OFAC") Advisory Notice to Policyholders

This Policyholder Notice shall not be construed as part of your policy and no coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – http//www.treas.gov/ofac.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

ERISA AMENDATORY ENDORSEMENT

In consideration of the premium charged, it is agreed that solely with respect to loss sustained by any **ERISA Plan** included as a **Sponsored Plan**, this Coverage Part is amended as follows:

(1) Section IV, ERISA Plan Extension, is deleted.

(2) Insuring Clause (A) is deleted and replaced with the following:

Insuring Clause (A): Fiduciary Dishonesty Coverage: The Company shall pay the **Insured** for loss of **Money**, **Securities**, or **Property** resulting directly from **Fraud or Dishonesty** committed by an **Employee** acting alone or in collusion with others.

(3) Section II, Definitions, is amended as follows:

A. The definition of **Employee(s)** is deleted and replaced with the following:

Employee(s) means any natural person while in the service of any **Insured** who is required to be bonded by Title 1 of **ERISA**, including:

(a) a fiduciary;

(b) a trustee;

(c) an administrator;

(d) an officer;

(e) any other natural person who handles **ERISA Plan** assets; or

(f) any natural person described paragraphs (a) through (e) above during a period not exceeding sixty (60) days following the termination of such natural person's service.

Provided, however, **Employee** shall not include any independent contractor or any agent, broker, factor, commission merchant, consignee, or representative of the same general character or employee thereof.

B. The definition of **ERISA Plan** is deleted and replaced with the following:

ERISA Plan means any Employee Benefit Plan, Pension Benefit Plan, or Welfare Benefit Plan, as defined under **ERISA**, which is operated solely by an **Organization** or jointly by an **Organization** and a labor organization for the benefit of **Employees** and which existed on or before the inception of this coverage section or which is created or acquired after the inception of this Coverage Part, provided that **ERISA Plan** shall not include any multi-employer plan.

C. The following definitions are added:

ERISA means the Employee Retirement Income Security Act of 1974, as amended.

Fraud or Dishonesty means any intentional act of larceny, theft, embezzlement, forgery, misappropriation, wrongful abstraction, wrongful conversion or willful misapplication, or any other intentional fraudulent or dishonest act. **Fraud or Dishonesty** shall also include any intentional act prohibited by Title 18, Section 1954 of the U.S. Code.

(4) Section III, Exclusions, is deleted and replaced with the following:

III. LIMITATIONS

The Company shall not be liable for loss involving:

(a) the disclosure of confidential or personal information while in the care, custody or control of an **Insured**, including but not limited to patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, retirement or health savings account information or any similar type of non-public information, provided that this limitation shall not apply to loss that is otherwise covered under this Coverage Part caused by an **Employee's** acts of **Fraud or Dishonesty** through the use of, disclosure of or access to such confidential or personal information; or

(b) fees, costs, fines, penalties or any other expenses incurred by an **Insured** which result, directly or indirectly, from the access to or disclosure of an **Insured's** or another entity's or person's confidential or personal information, including but not limited to patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, retirement or health savings account information or any similar type of non-public information.

(5) Section VII, Limits of Liability, is deleted and replaced with the following:

The Company's maximum liability for each loss shall not exceed the Limit of Liability applicable to such loss, as set forth in Item 2 of the Declarations regardless of the number of **Insureds** sustaining the loss.

The payment of any loss under this Coverage Part shall not reduce the liability of the Company for other losses whenever sustained; provided, however, that the total liability of the Company for all loss resulting from any act or any series of acts committed by the same **Employee** or in which the same **Employee** is concerned or implicated, regardless of whether such act or series of acts was committed before or during the **Policy Period**, will be treated as a single loss and the applicable Limit of Liability of this Coverage Part will apply.

With respect to each **ERISA Plan**:

(a) if covered loss is sustained by any **ERISA Plan** which does not have any employer securities, the Limit of Liability applicable to such covered loss shall be the greater of:

(1) $1,000; or

(2) ten percent (10%) of the funds handled by such **ERISA Plan** as of the effective date of this Coverage Part,

up to a maximum limit of liability of $500,000; or

(b) if covered loss is sustained by any **ERISA Plan** which does have any employer securities, the Limit of Liability applicable to such covered loss shall be the greater of:

(1) $1,000; or

(2) ten percent (10%) of the funds handled by such **ERISA Plan** as of the effective date of this Coverage Part,

up to a maximum limit of liability of $1,000,000,

provided that, in all events (i) if the Limit of Liability as set forth in Item 2 of the Declarations is less than the amounts set forth in paragraphs (a) or (b) above, then the applicable Limit of Liability shall be equal to the minimum limit of insurance as required by **ERISA**; or (ii) if the Limit of Liability as set forth in Item 2 of the Declarations equals or exceeds the amounts set forth in paragraphs (a) or (b) above, then the Limit of Liability shall be the Limit of Liability as set forth in Item 2 of the Declarations.

(6) Subsection VIII, Retention is amended to add the following:

No retention shall apply to loss sustained by an **ERISA Plan** covered under this Coverage Part.

(7) Section IX, Ownership, is amended to the extent that wherever the term **Organization** appears, it is deleted and replaced with **Organization** or **ERISA Plan**.

(8) The following subsections are added:

- **PAYOVER**

In compliance with Title 1 of **ERISA**, payment by the Company shall be held to the benefit of any **Insured(s)** sustaining a loss. If such payment is in excess of the amount of coverage required by **ERISA** for such **Insured(s)**, such excess shall be held for the use and benefit of any other named **Insured(s)** should such **Insured(s)** also **Discover** loss recoverable hereunder. If **Money**, **Securities**, and other **Property** of two or more **Insureds** is commingled, recovery hereunder for loss of such **Money**, **Securities**, and other **Property** shall be shared by such **Insureds** on a pro rata basis in accordance with the amount of coverage each such **Insured** is required to carry pursuant to **ERISA**.

- **EXTENDED DISCOVERY PERIOD**

This Coverage Part covers loss sustained prior to the termination or cancellation of this Coverage Part and **Discovered**:

(a) within twelve (12) calendar months following the termination or cancellation of this Coverage Part in its entirety; or

(b) within twelve (12) calendar months following the termination or cancellation of this Coverage Part as to any **Insured**,

in accordance with Section X, Termination of Policy of the General Terms and Conditions.

Provided that this Extended Discovery Period terminates immediately upon the effective date of any other insurance obtained which replaces the coverage afforded by this Coverage Part in an amount no less than the minimum amount required under **ERISA** and provides coverage for loss sustained prior its effective date.

- **TERMINATION**

This Coverage Part shall terminate as to any **Employee** and no coverage will be available for loss caused by such **Employee**:

(a) immediately upon **Discovery** by any **Executive** or **Insurance Representative** (not in collusion with such **Employee**) of any fraudulent or dishonest act on the part of such **Employee** while in the service of any **Insured**;

(b) after an **Executive** or **Insurance Representative** becomes aware of any fraudulent or dishonest act by such **Employee** involving **Money**, **Securities** or **Property** valued at twenty-five thousand dollars ($25,000) or more, committed prior to such **Employee's** service with any **Insured**; or

(c) more than sixty (60) days following the termination of service to any **Insured** of such **Employee**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

PRIVACY AND DATA BREACH EXCLUSION ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) The Company shall not be liable under this Coverage Part for **Loss** on account of any **Claim** based upon, arising from or in consequence of any:

(A) unauthorized or unlawful access to, alteration of, or damage to any computer, computer program, computer network or computer database, including but not limited to the infection of any of the foregoing through the transmission of a computer virus, malware, spyware or other fraudulent or unauthorized computer code that: (1) modifies, alters, damages, destroys, deletes, records or transmits information; (2) contaminates other computer programs or computer data; or (3) consumes computer resources or in some fashion usurps the normal operation of a computer system;

(B) denial of service or delay, disruption, impairment or failure of any computer or communication network, service, hardware or software including but not limited to any **Claim** for lost profits or opportunities as a result of such denial of service, delay, disruption, impairment or failure;

(C) unauthorized or unlawful access to, disclosure of, alteration of, theft, collection, storage, use or dissemination of, or loss of any confidential or proprietary business information or personally identifiable information as defined by: (1) applicable federal, state, local (or foreign equivalent) statutory law or common law anywhere in the world, or amendments thereto or rules or regulations promulgated thereunder; or (2) an **Organization's** publicly stated privacy policy;

(D) violation of any federal, state or local (or foreign equivalent) privacy or data security statutory law or common law anywhere in the world or amendments thereto or rules or regulations promulgated thereunder; or

(E) violation of any law, ordinance, regulation or statute used to impose liability in connection with any unsolicited communication, distribution, publication, sending or transmission via telephone, cell or mobile phone, telephone facsimile machine, computer or other telephonic or electronic devices, including but not limited to the United States of America Telephone Consumer Protection Act of 1991, United States of America CAN-SPAM Act of 2003 and any amendments thereto or any rules or regulations promulgated thereunder, or any similar provisions of any federal, state, or local statutory law or common law anywhere in the world,

provided that this Exclusion shall not apply to **Loss** on account of any securities **Claim**, securityholder derivative demand or securityholder derivative action.

(2) Section XI, Other Insurance or Indemnity, of this Coverage Part is amended to add the following:

Solely with respect to any **Loss** that may be covered under both this Coverage Part and under any policy providing cyber liability, network liability, cybersecurity or security coverage or any similar type of policy (hereinafter “Other Policy”), this Coverage Part shall be specifically excess of, and shall not contribute with, any such Other Policy, or any renewal or replacement thereof.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

BIOMETRIC INFORMATION PRIVACY CLAIM EXCLUSION ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) The Company shall not be liable under this Coverage Part for **Loss** on account of any **Biometric Information Privacy Claim**; provided that this Exclusion shall not apply to **Loss** on account of any **Employment Claim** for **Retaliation**.

(2) For purposes of this Endorsement, the following shall apply:

Biometric Information means any:

(A) Biometric identifier including a retina or iris scan, fingerprint, voiceprint or scan of hand or face geometry; or

(B) Biometric information including any information, regardless of how it is captured, converted, stored or shared, based on an individual's biometric identifier used to identify an individual.

Biometric Information Privacy Claim means any **Claim**, in whole or in part, based upon, arising from, or in consequence of any actual or alleged:

(A) disclosure, collection, possession, usage, retention, storage, transmission, protection, dissemination, or destruction of **Biometric Information**;

(B) consent to or release of the disclosure of **Biometric Information**;

(C) sale, lease, capture, purchase or trade or any other types of profit from **Biometric Information**;

(D) violation of any policies or practices involving **Biometric Information**; or

(E) violation of any federal, state or local statutory law or common law anywhere in the world involving **Biometric Information**, or any amendments thereto or rules or regulations promulgated thereunder.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

EMPLOYMENT PRACTICES / THIRD PARTY EXCLUSION WITH NON-INDEMNIFIABLE LOSS AND SECURITYHOLDER CARVE-OUT ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) The Company shall not be liable under this Coverage Part for **Loss** on account of any **Claim** based upon, arising from or in consequence of any: (i) employment-related **Wrongful Act**; or (ii) discrimination against, or harassment, including but not limited to sexual harassment, of any third party, provided that this Exclusion shall not apply to: (a) any **Loss** on account of any securities **Claim**, securityholder derivative demand or securityholder derivative action; or (b) any **Non-Indemnifiable Loss**.

(2) Exclusion (A)(3), Bodily Injury/Property Damage, of this Coverage Part, including any amendment by endorsement, is amended to delete the phrase “provided that this Exclusion (A)(3) shall not apply to **Loss** for any mental anguish, humiliation or emotional distress asserted in an employment-related **Claim** afforded coverage under Insuring Clauses (A), Individual Non-Indemnified Liability Coverage, or (B), Individual Indemnified Liability Coverage” and the following is inserted:

> provided that this Exclusion (A)(3) shall not apply to **Non-Indemnifiable Loss** for any mental anguish, humiliation or emotional distress asserted in an employment-related **Claim**;

(3) Paragraph (i) of Exclusion A(6)(c), Insured versus Insured, of this Coverage Part is deleted and replaced with the following:

> (i) for employment-related **Wrongful Acts** against an **Insured Person**, provided this exception shall only apply to **Non-Indemnifiable Loss**;

(4) Exclusion (B)(2), Employment Practices, and Exclusion (B)(3), Third Party Discrimination or Sexual Harassment, of this Coverage Part are deleted.

(5) For purposes of this Endorsement, **Non-Indemnifiable Loss** means **Loss** of an **Insured Person** on account of a **Claim** for which the **Organization** has not indemnified and is not permitted or required to indemnify (including by reason of **Financial Impairment**) pursuant to applicable law or contract, or the charter, bylaws, operating agreement or similar document of an **Organization**.

(6) Notwithstanding Section IX, Allocation, of this Coverage Part (including any endorsement amending Section IX), if the Exclusion in paragraph (1), (2) or (3) of this endorsement is applicable, the **Insureds** and the Company shall use their best efforts to determine an allocation between **Loss** that is covered by this Coverage Part and loss, or any other amount, that is not covered by this Coverage Part based on the relative legal and financial exposures of the covered parties to the covered matters.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

____
Authorized Representative

ENDORSEMENT/RIDER

<COVSECT>

Effective date of
this endorsement/rider: <TRXEFFDATE>

<CARRNAME>

Endorsement/Rider No. <EN>

To be attached to and
form a part of Policy No. <POLICYNO>

Issued to: <ACCTNAME>

COMPUTER FRAUD COVERAGE AMENDATORY ENDORSEMENT

In consideration of the premium charged, it is agreed that the Crime Coverage Part is amended as follows:

1. Insuring Clause (E): Computer Fraud Coverage is deleted in its entirety and replaced with the following:

   Insuring Clause (E): Computer Fraud Coverage

   (E) The Company shall pay the **Parent Organization** for loss sustained by an **Insured** resulting directly from the unauthorized:

   (1) transfer, payment, or deliver of **Money** or **Securities**; or

   (2) transfer or delivery of **Property**,

   committed by a **Third Party**, after such **Third Party** commits a **Network Intrusion**.

2. Solely with respect to the coverage provided by this Endorsement, Section II, Definitions, is amended as follows:

   a. The definition of **Money** is amended to add the following at the end thereof:

   Money does not include **Securities** or **Cryptocurrency**.

   b. The definition of **Property** is amended to add the following at the end thereof:

   Property does not include **Money** or **Securities**. **Property** does not include computer programs, electronic data or any property specifically excluded under this Coverage Part.

   c. The definition of **Securities** is deleted and replaced with the following:

   Securities means any tangible negotiable and nonnegotiable instruments or contracts representing either **Money** or **Property** and includes:

   (A) stock certificates, tokens, tickets, casino chips, revenue and other stamps (whether represented by actual stamps or unused value in a meter) in current use;

   (B) evidences of debt issued in connection with credit or charge cards, which cards are not issued by any **Insured**; or

   (C) gift certificates, gift cards, or similar instruments issued by any **Insured**.

Securities does not include **Money** or **Cryptocurrency**, but shall include any share, participation or other interest in property of the issuer, or an enterprise of the issuer, or an obligation of the issuer, which is: (i) not represented by an instrument and the transfer of which is registered on books maintained for that purpose by or on behalf of the issuer; (ii) of a type commonly dealt in on securities exchanges or markets; and (iii) either one of a class or series or by its terms divisible into a class or series of shares, participations, interests or obligations.

d. The definition of **Third Party** is deleted and replaced with the following:

Third Party means any natural person or organization other than an **Employee**, **Client**, or any agent, factor, commission merchant, independent contractor, or other authorized representative of an **Insured** or of a **Client**.

e. The following terms are added:

Cryptocurrency means a digital or electronic medium of exchange, operating independently of a central bank, in which encryption techniques are used to regulate the generation of units and to verify the transfer of such units.

Customer Communication System means an online portal or mobile application provided by an **Insured** for purposes of accessing a **Client** or customer account maintained by the **Insured**.

Insured's Computer System means a device or group of devices and all input, output, processing, storage, off-line media libraries (including third-party hosted computing services accessed across the internet and their associated infrastructure, platform, and software services), and communication facilities, including related communications networks, which pare connected directly or indirectly to such device or group of devices and which are leased, owned or operated by an **Insured** or operated for the benefit of an **Insured** by another entity under written agreement with such **Insured.**

Insured's Network means:

(A) an **Insured's Computer System**; or

(B) a **Customer Communication System**.

Network Intrusion means:

(A) unauthorized access; or

(B) the entry of an unauthorized application or software program,

into the **Insured's Network** by any entity or natural person, except an **Employee** or any authorized representative of the **Insured**.

3. Section III, Exclusions, is amended as follows:

a. Exclusion (A)(14) is deleted and replaced with the following:

(14) loss or damage due to **Theft**, **Forgery**, **Network Intrusion**, **Funds Transfer Fraud**, **Money Orders And Counterfeit Currency Fraud**, **Credit Card Fraud** or other fraudulent, dishonest or criminal act (other than **Robbery** or **Safe Burglary**) committed by any authorized representative of an **Insured**, whether acting alone or in collusion with others, provided that this Exclusion (A)(14) shall not apply to otherwise covered loss under Insuring Clauses (A), Employee Theft Coverage, or (I), Client Coverage, resulting from **Theft** or **Forgery** committed by an **Employee** acting in collusion with such authorized representative.

b. Exclusion (B)(2)(a) is deleted and replaced with the following:

(a) loss or damage due to **Forgery**, **Network Intrusion**, **Funds Transfer Fraud**, **Money Orders and Counterfeit Currency Fraud** or **Credit Card Fraud**; or

c. No coverage will be available under Insuring Clause (E) for:

(A) loss resulting from any transfer, payment or delivery of **Money**, **Securities**, or **Property** approved by an **Employee** or arising out of any misrepresentation received by any **Employee**, agent, independent contractor or other representative of the **Insured**, whether such transfer, payment or delivery was made in good faith or as a result of trick, artifice, fraud or false pretenses;

(B) loss of **Cryptocurrency**;

(C) loss resulting directly or indirectly from the use of credit, debit, charge, access, convenience, identification, cash management or other cards whether such cards were issued, or purport to have been issued, by an **Insured** or by any entity other than the **Insured**;

(D) loss resulting directly or indirectly from the failure, malfunction, inadequacy or illegitimacy of any product or service;

(E) loss resulting directly or indirectly from the failure of any party to perform in whole or in part under any contract;

(F) loss resulting directly or indirectly from the extension of any loan, credit or similar promise to pay; or

(G) loss resulting directly or indirectly from any gambling, game of chance, lottery or similar game.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

<ENDSIG>

____
Authorized Representative